

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the**

¹ <https://www.unesco.org/en/right-education/evolving>

International Commission on the Futures of Education², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to 'include everyone, regardless of circumstance, context or background'. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that *"Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4"*. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sq_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration-ecce-2022)

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education** in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁷, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁸. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

⁷ <https://en.unesco.org/education/girls-women-rights>

⁸ [UIS Statistics \(unesco.org\)](https://uis.unesco.org/)

GENERAL INFORMATION:**Country name:** New Zealand**Organization or entity responsible for the preparation of the report:** Ministry of Education**Name of contact person:** Julia White**Email and telephone number of contact person:** julia.white@education.govt.nz, +6444630955**I. Ratification and applicability of the Convention against Discrimination in Education⁹**

- Is your country a State Party to the Convention?

☒ **Yes**

☐ **No:** Does your country plan to ratify this instrument?

☐ **Yes:** Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☐ Yes

☒ **No**

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹⁰

☐ No

☐ Yes

Have the provisions of the Convention been invoked?

☐ Yes ☒ **No**

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

The Education and Training Act 2020 establishes a right to education that is not a freestanding one enforceable through the Courts. Under this Act, children aged 5 to 19 have a right to free education, and children with special education needs have the same rights to enrol, attend and receive education at a State school as all other children. If the Secretary for Education is satisfied that a student requires an educational service beyond that normally obtained in an ordinary class in a State school, that student can enrol in a specialist school or receive help from a special service under Section 37 of the Act. The application the Education and Training Act 2020 receives external scrutiny through the Education Review Office's review processes, by the Ombudsman, the Controller and Auditor General, parliamentary processes and international review.

New Zealand jurisprudence about the right to education includes *Daniels v The Attorney-General*¹¹. In the High Court (2002), Justice Baragwanath said that 'Where a child's needs are met in an ordinary school, the Crown's duty in respect of that child has been discharged where a conventional school is incapable of meeting a child's need, the Crown has an obligation, pursuant to s. 9 of the Education Act 1989, to provide special education to the child sufficient to enable the child to receive some sort of worthwhile education.' However, the Court of Appeal (2003) found that the statutory right to education, and the corresponding legal obligation on education authorities to meet the education needs of each individual, apply equally to all

⁹ <https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

¹⁰ Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

¹¹ Attorney-General v Daniels [2003] 2 NZLR 742

children irrespective of whether they have special needs or not. In the view of the Court of Appeal the right to a suitable education was promoted by the establishment of a system by which it was provided, rather than in its being a judicially enforceable right.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation. It further corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☐ Yes ☐ No

- If yes, please provide reference:

All legislative and regulatory amendment includes a population impact analysis which aims to identify whether specific population groups will be disproportionately impacted by proposals. Any new legislation also passes through a Bill of Rights 1990 vet. Therefore, while the specific Convention and sustainable development goals have not been explicitly considered, the standard processes in New Zealand provide safeguards to mitigate risk of discrimination.

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

☒ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please indicate the relevant legal provisions:

- Education and Training Act 2020 - <https://www.legislation.govt.nz/act/public/2020/0038/latest/LMS170676.html>
- Human Rights Act 1993 - https://www.legislation.govt.nz/act/public/1993/0082/latest/DLM304212.html?search=sw_096be8ed81ce7ed5_discrimination_25_se&p=1#DLM304211
- New Zealand Bill of Rights Act 1990 - https://www.legislation.govt.nz/act/public/1990/0109/latest/DLM224792.html?search=sw_096be8ed81c84723_discrimination_25_se&p=1#DLM224791

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

¹² Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

¹³ See: Article/Paragraph 1(1).

¹⁴ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

There is commitment to the Convention provisions in New Zealand's education system. The education system is intended to be equitable regardless of gender, ethnicity, religion, or social and economic background. This intention is supported by specific policies aimed at lifting the achievement of particular vulnerable groups.

Education legislation in New Zealand must be read alongside the Human Rights Act 1993 and the New Zealand Bill of Rights Act 1990.

Human Rights Act 1993

Under this Act, discrimination in access to educational establishments is prohibited (section 57). The prohibited grounds of discrimination are included within section 21.

Under the Human Rights Act, (subject to some exceptions), it is unlawful for any educational establishment, governance body, management or teacher to discriminate against a person where so doing would result in:

- The refusal or failure to admit a person as a pupil or student; or
- The admittance of a person as a pupil or a student on less favourable terms and conditions than would otherwise be made available; or
- The denial or restricted access to any benefits or services provided by the establishment; or
- The exclusion of a person as a pupil or a student or subject him or her to any other detriment.

The prohibited grounds for discrimination are:

- Sex including pregnancy and childbirth, sexual orientation
- Marital or family status (including gender identity)
- Religious and ethical beliefs
- Colour, race, ethnic or national origins
- Disability
- Age
- Political opinion
- Employment status
- Family status.
- Sexual orientation.

The Human Rights Act permits measures to be taken in good faith for the purpose of assisting or advancing persons or groups of persons disadvantaged because of discrimination to achieve an equal place with other members of the community.

Bill of Rights Act 1990

This Act sets out the right to freedom from discrimination on the grounds of discrimination as detailed in the Human Rights Act 1993 (section 19).

Te Tiriti o Waitangi/The Treaty of Waitangi

As a partner to Te Tiriti o Waitangi/the Treaty of Waitangi (Te Tiriti/the Treaty), the Crown has a duty to actively protect Māori rights and interests including taonga (treasure). For the education system this duty is recognised through several provisions in the Education and Training Act 2020. Some notable provisions relate to sections 4, 6, 9 and 127:

- Section 4(d) – states that one of the purposes of the Education and Training Act 2020 is to establish and regulate an education system that honours Te Tiriti/the Treaty and supports Māori-Crown relationships.
- Section 6 – the Minister of Education and the Minister of Māori-Crown Relations: Te Arawhiti, may, for the purposes of providing equitable outcomes for all students, jointly issue a statement that provides greater specificity around what education agencies must do to give effect to the public service objectives that relate to Te Tiriti/the Treaty. Ministers have not yet determined a need to issue this joint statement.
- Section 9 – sets out all the key Te Tiriti/the Treaty-related provisions within the Education and Training Act 2020.
- Section 127 - relates to school boards who are the employer of all staff and oversee the governance of state and state-integrated schools in New Zealand. It states that one of a board's primary objectives in governing a school is to ensure that the school gives effect to Te Tiriti/the Treaty by:
 - working to ensure that its plans, policies, and local curriculum reflect local tikanga Māori (customary practice), mātauranga Māori (knowledge), and te ao Māori (Māori language, practices, customs and knowledge); and
 - taking all reasonable steps to make instruction available in tikanga Māori and te reo Māori; and

- achieving equitable outcomes for Māori students.

A new planning and reporting framework came into effect on 1 January 2023. Under this new framework schools are required to publish and submit to their community and the Ministry of Education, their strategic plans, annual implementation and annual reports. The first set of reports were required to be submitted to the Ministry of Education by May 2024.

For more information, see: <https://www.education.govt.nz/our-work/legislation/education-and-training-act-2020/the-education-and-training-act-te-tiriti-o-waitangi/>.

The Education and Training Act 2020

The Education and Training Act 2020 is New Zealand's primary education legislation. It ensures that education in New Zealand schools is non-discriminatory, inclusive, culturally, and physically safe for students, and reflects the importance of Te Tiriti/the Treaty.

The Education and Training Act 2020 came into effect on 1 August 2020. It incorporated and replaced the Education Acts 1964 and 1989 and implemented changes to strengthen provisions to eradicate discrimination, racism, and bias within the education sector. Changes included:

- The enabling provision for the Ministers of Education and Māori-Crown Relationships: Te Arawhiti to issue a statement of expectations of education agencies with the purpose of achieving equitable outcomes for all students (mentioned above).
- A provision that explicitly states that students have the right to attend the school at which they are enrolled for all the hours it is open.
- Requiring parents to confirm in writing if they wish their child to attend or take part in any religious instruction. This changes the onus from the Education Act 1964 whereby parents must opt out of such instruction.
- Establishing the legislative framework for a disputes resolution scheme for students to facilitate and promote the resolution of serious disputes between students and State schools. Serious disputes include any racism or other form of discrimination experienced by the student while at the school.
- Amending objectives for school boards which include a requirement that boards give effect to relevant student rights set out in the new legislation, the New Zealand Bill of Rights Act 1990, and the Human Rights Act 1993.
- Amending school board objectives to require the board to:
 - take all reasonable steps to eliminate racism, stigma, bullying, and any other forms of discrimination within the school.
 - give effect to Te Tiriti/the Treaty:
 - Working to ensure that its plans, policies and local curriculum reflect local tikanga Māori, mātauranga Māori, and te ao Māori; and
 - Taking all reasonable steps to make instruction available in tikanga Māori and te reo Māori; and
 - Achieving equitable outcomes for Māori students (mentioned above).

Section 33 of the Education and Training Act 2020 provides that every domestic student is entitled to free enrolment and free education at any State school during the period beginning on the student's fifth birthday and ending on 1 January after the student's 19th birthday. Within this period, attendance at school is compulsory from a person's 6th birthday ending on their 16th birthday.¹⁶

Section 34 of the Education and Training Act 2020 clarifies that students with special education needs have the same rights to enrol, attend and receive education at a state school during all the hours the school is open as those who do not. These rights apply to all domestic students, irrespective of their national origins.

There are some restrictions in the legislation on attendance at certain schools. For example, the Minister may declare any school to be a boys' school, a girls' school, or a coeducational school.

School Boards of Trustees (the governance structure for State schools) must ensure their school is a physically and emotionally safe place for all students and staff. In addition to the new objectives above, section 127 of the Education and Training Act 2020 advises that a board's primary objectives in governing a school are to:

¹⁶ Domestic students are defined in the Education and Training Act 2020 as a New Zealand citizen, a holder of a residence class visa, or people in a class specified by the Minister of Education by Notice in the Gazette. Holders of a New Zealand residence class visa, granted under the Immigration Act 2009, are entitled to enrol as domestic students in New Zealand schools. These include, but are not limited to, students from Tokelau, the Cook Islands, and Niue (classified as New Zealand citizens), and Australian citizens.

- Ensure that every student at the school is able to attain their highest possible standard in educational achievement
- Ensure that the school is a physically and emotionally safe place for all students and staff
- Ensure the school is inclusive of, and caters for, students with differing needs.

In addition, section 201 of the Education and Training Act 2020 provides that when establishing a State school, the Minister may, by notice in the Gazette, designate the school as a kura kaupapa Māori. Kura kaupapa Māori are schools focused on education for tamariki (children) under the principles of Te Aho Matua which is the founding document for all kura kaupapa Māori. These are State schools which use te reo Māori as the principal language of instruction and operate in accordance with the Te Aho Matua philosophy. All other kura establish under section 204 of the Education and Training Act 2020 as designated character schools. These kura use te reo Māori as the principal language of instruction and usually operate in accordance with the principles and philosophies of their local hapū and iwi.

Under Section 281 of the Education and Training Act 2020, an express duty is placed on the councils of institutions (colleges of education, polytechnics, specialist colleges, universities and wānanga to ensure that the institution does not discriminate unfairly against any person.

☒ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please provide details:

Education (Pastoral Care of Tertiary and International Learners) Code of Practice 2021 (the Code)

The Education (Pastoral Care of Tertiary and International Learners) Code of Practice 2021 makes sure that tertiary and international learners enrolled with New Zealand education providers are safe and supported. The Code sets out what education providers must do to ensure the wellbeing and safety of their learners. The Code ensures that providers understand and respond to diverse learner voices and wellbeing and safety needs in a way that upholds their mana and autonomy, and that providers foster learning environments that are safe and designed to support positive learning experiences of diverse learner groups. The Code also outlines that providers must have practices for:

- Reducing harm to learners resulting from discrimination, racism (including systemic racism), bullying, harassment and abuse
- Working with learners and staff to recognise and respond effectively to discrimination racism (including systemic racism), bullying, harassment and abuse
- Promoting an inclusive culture across the learning environment
- Upholding the cultural needs and aspirations of all groups throughout the learning environment

For more information, see: <https://www.education.govt.nz/news/new-code-of-practice-for-the-pastoral-care-of-tertiary-and-international-learners/>.

Ōritetanga – Learner Success

The Learner Success framework (developed by the Tertiary Education Commission) aims to promote parity across New Zealand's tertiary education system, with a particular focus on Māori and Pacific learners.

Ka Hikitia – Ka Hāpaitia (Ka Hikitia)

Ka Hikitia is a cross-agency Māori education strategy for the education sector. The agencies include Ministry of Education; Te Aho o Te Kura Pounamu; Education New Zealand; Education Review Office (ERO); New Zealand Qualifications Authority (NZQA); The Teaching Council Aotearoa New Zealand; Tertiary Education Commission (TEC); New Zealand School Trustees Association. The education sector includes all early learning, schooling, and tertiary education provision. It sets out how Government will work with education services to achieve system shifts in education and support Māori learners and their whānau (family), hapū (sub-tribe) and iwi (tribe) to achieve excellent and equitable outcomes and provides an organising framework for the actions agencies will take. For more information, see: <https://www.education.govt.nz/our-work/overall-strategies-and-policies/ka-hikitia-ka-hapaitia/>.

Tau Mai Te Reo

Tau Mai Te Reo is a cross-agency Māori language strategy for the education sector. It sets out the goals that Government is seeking to achieve and provides a framework for coordinating programmes and services that support Māori language in Māori-medium and English-medium education.

Ka Hikitia and Tau Mai Te Reo are companion strategies and should be read in conjunction with each other. Ka Hikitia is a strategy for all Māori learners, while Tau Mai Te Reo is a strategy for all learners. Refer <https://www.education.govt.nz/our-work/overall-strategies-and-policies/tau-mai-te-reo/>.

Action Plan for Pacific Education 2020-2030 (2023 Refresh)

The Action Plan for Pacific Education 2020-2030 has a vision that diverse Pacific learners and their families feel safe, valued, and equipped to achieve their education aspirations. It outlines the actions the Government has committed to achieve this vision and signals how early learning services, schools and tertiary providers can achieve change for Pacific learners and their families. This was refreshed in 2023. The 2023 refresh of the plan includes a strengthened focus on Pacific bilingual and immersion education and Pacific languages in education through a change to key shift and the next set of Government actions that will further contribute to achieving the vision and 5 key shifts for Pacific education success. Refer <https://www.education.govt.nz/our-work/overall-strategies-and-policies/action-plan-for-pacific-education/>.

International Education Strategy

The Strategy aims to create an environment where international education can thrive and provide economic, social and cultural benefits for all New Zealand.

National programmes and other initiatives

The Ministry of Education runs a wide range of programmes to help schools to eliminate discrimination and ensure equal access to education.

This includes programmes such as:

- The communication service that offers support if a student has difficulties with speaking, listening and understanding language.
- The *Ongoing Resourcing Scheme* that provides support for students with the highest ongoing levels of need for specialist support to enable them to attend school, join in and learn alongside other students at school. For more information, see: <https://www.education.govt.nz/school/student-support/special-education/ors/>.
- Scholarships for Māori and Pacific secondary school and tertiary students.
- *Ka Ora Ka Ako | Healthy School Lunches Programme* which provides food every school day to all learners in eligible schools. Ka Ora Ka Ako is targeted at the top 25% of schools and kura with learners facing the greatest socio-economic barriers according to the Equity Index (see page 20). For more information, see: <https://www.education.govt.nz/our-work/overall-strategies-and-policies/wellbeing-in-education/free-and-healthy-school-lunches/>.
- *Ikura | Manaakitia te whare tangata: Period Products in Schools* is the opt-in period products in schools' initiative which provides access to free period products for children and young people in participating state and state-integrated schools across New Zealand. For more information, see: <https://www.education.govt.nz/our-work/overall-strategies-and-policies/wellbeing-in-education/ikura-manaakitia-te-whare-tangata-period-products-in-schools/>.
- *Tu'u Mālohi | Stand Strong* is a programme aimed at strengthening wellbeing support for Pacific Learners in Years 9-13, their families and communities. It is a Pacific community-led approach that provides opportunities to unpack, values and languages, providing among other things, skills and awareness on how to combat and navigate racism, improve resilience and set career goals and future aspirations.
- *Fakailoga Tino | Our Living Room* is a programme developed to support teachers to name, negotiate and navigate racism in schools. Fakailoga Tino allows teachers to examine and reflect on their assumptions, beliefs, and teaching practices so that they can support Pacific learners, their parents and communities to help raise student achievement and lift education outcomes.
- Alongside efforts to support remote and isolated schools, the Ministry of Education offers a range of additional support to help secondary school students living in remote areas or facing significant barriers to their education. This includes:
 - A boarding allowance to students. When there is no local secondary school for geographically remote learners. Multiple Barriers Boarding Allowance' to help learners with multiple barriers attend their local school. For more information, see: <https://www.education.govt.nz/school/funding-and-financials/boarding-allowances-information-for-schools/>.

- Transport assistance to help more than 100,000 students from rural communities get to school each day. For more information, see: <https://www.education.govt.nz/school/property-and-transport/transport/sta-eligibility/>.
- There is a wide range of Ministry of Education programmes to support the revitalisation of te reo Māori and to assist schools to meet their Te Tiriti/the Treaty related obligations. For more information see: <https://www.education.govt.nz/our-work/legislation/education-and-training-act-2020/giving-better-effect-to-te-tiriti-o-waitangi/>.

☒ Combatting discrimination in terms of curriculum:

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☐ In technical and vocational education and training
- ☐ In higher education
- ☐ In adult education and alternative learning

- Please provide details:

National Curricula

New Zealand has two curricula for schooling - *The New Zealand Curriculum* and *Te Marautanga o Aotearoa*. *The New Zealand Curriculum* acknowledges New Zealand's official languages – te reo Māori and New Zealand Sign Language, as well as English. *Te Marautanga o Aotearoa* is designed for Māori language education pathways and recognises that every ākonga deserves to be supported to reach their full potential and to be immersed and gain expertise in te reo Māori, tikanga Māori, mātauranga Māori, and te ao Māori (Māori language, practices, customs, and knowledge).

The New Zealand Curriculum is in the process of being refreshed and *Te Marautanga o Aotearoa* is in the process of being redesigned. While building on the strengths of our current national curriculum, this work aims to establish a knowledge-rich curriculum grounded in the science of learning that is clear about what to teach, and by when, each year of schooling. For more information, see: <https://tahurangi.education.govt.nz/>.

New Zealand has one early learning curriculum framework that includes three pathways:

- *Te Whāriki: He whāriki mātauranga mō ngā mokopuna o Aotearoa Early childhood curriculum (Te Whāriki)*
- Te Ara Māori ('The Māori path')
- *Te Whāriki a Te Kōhanga Reo is a distinct child-centred and learning-oriented curriculum* that guides the educational foundations, approaches and practices of kōhanga reo, which is a major and distinct group of Māori-medium languages services.

Te Whāriki (also known as 'Te Ara Whānui,' 'The wide path') is the pathway most early learning services use in New Zealand. Te Ara Māori is a curriculum pathway within *Te Whāriki* for Puna Reo (services that provide early learning in te reo Māori), Māori-medium and bilingual early learning settings that provides a culturally connected curriculum pathway based on Māori philosophies, pedagogies, values, practices, and language.

Te Whāriki a Te Kōhanga Reo is the curriculum that guides the educational foundations, approach, and practices of kōhanga reo, which is a major and distinct group of Māori-medium services.

Te Whāriki holds the vision that all children are "competent and confident learners and communicators, healthy in mind, body and spirit, secure in their sense of belonging and in the knowledge that they make a valued contribution to society". For more information, see: [Te Whāriki: Early Childhood Curriculum Document](#).

Te Whāriki is an inclusive curriculum – a curriculum for all children. Inclusion encompasses gender and ethnicity, diversity of ability and learning needs, family structure and values, socio-economic status and religion. An inclusive curriculum is founded on Māori values and principles and is strengths-based. Kaiako (teachers, educators, and other adults, including parents in parent-led services) seek to develop mutually positive relationships with children and to work with family to realise high expectations.

Section 267 of the Education and Training Act 2020 advises that universities and wānanga (other than

Te Pūkenga—New Zealand Institute of Skills and Technology) have academic freedom and institutional autonomy.

o Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

See 1.1.

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (several items may be ticked):

General measures:

- | | |
|--|--|
| ☒ Legislation provides for inclusive education for all | ☒ Multiple and flexible learning pathways ¹⁸ are provided for |
| ☒ Policy measures aim to enhance inclusion in education for all | ☒ Curricula and teaching methods are inclusive in design ¹⁹ |
| ☒ Teachers are trained on inclusive education ¹⁷ and to value diversity | ☒ Multilingual and intercultural education is supported |
| ☒ Initiatives to address discrimination and promote cultural diversity and mutual acceptance | |

o Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The Education and Training Act 2020 establishes and regulates an education system that:

- Provides New Zealanders and those studying in New Zealand with the skills, knowledge, and capabilities they need to fully participate in the labour market, society and their communities.
- Provides all domestic students with the right to enrol, attend and receive education at a state school, including equal rights for students with learning support needs.
- Supports their health, safety and well-being.
- Assures the quality of education provided and the institutions and educators that provide and support it.
- Honours Te Tiriti/The Treaty and supports Māori-Crown relationships.
- School boards are obligated to ensure that their school is inclusive of, and caters for, students with differing needs.

Legislation provides for inclusive education for all

All New Zealand children between the ages of 5 and 19 have the same right to free enrolment and education at state schools. This includes the right to attend school for all of the hours that the school is open regardless of any special needs the student may have. Even those children residing unlawfully in New Zealand can apply to enrol at a free state school.

Enrolling at, and attending, a registered school is compulsory from age 6–16, unless a child has a certificate of exemption (used to support homeschooling) or an early leaving exemption (for students aged 15 who are intending to follow a successful pathway outside of the formal schooling system).

The New Zealand Bill of Rights Act 1990 and Human Rights Act 1993 makes it unlawful for education providers to discriminate against someone when providing access to education.

¹⁷ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

¹⁸ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁹ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

There is no right to early childhood education or further education (after the age of 19) in New Zealand.

Policy measures aim to enhance inclusion in education for all

In April 2024, the New Zealand Government announced six education priorities to deliver a world-leading education system that sets all New Zealand children and young people up for success by lifting achievement. These priorities are:

- **Clearer curriculum:** Establishing a knowledge-rich curriculum grounded in the science of learning.
- **Better approach to literacy and numeracy:** Implementing evidence-based instruction in early literacy and mathematics.
- **Smarter assessment and reporting:** Implementing consistent modes of monitoring student progress and achievement.
- **Improved teacher training:** Developing the workforce of the future, including leadership development pathways.
- **Stronger learning support:** Targeting effective learning support interventions for students with additional needs.
- **Greater use of data:** Using data and evidence to drive consistent improvement in achievement.

The Government believes that these priorities will result in an education system where all students are getting quality education and skills to succeed no matter where they live, and gain skills and qualifications, that will support them into further study and employment. As part of the priorities, teachers are supported with a detailed national curriculum, so parents are aware of their child's progress, and evidence-based supports and interventions are provided where they are needed.

Multiple and flexible learning pathways are provided for, and multilingual and intercultural education is supported

Although schooling is compulsory, there are different kinds of schools in New Zealand, and a family's choice depends on what is available where they live and the needs of the child and family. These options provide multiple and flexible learning pathways within the compulsory system so that families can choose options that are aligned to their identity, language, culture, and religion. Students can transfer between available pathways in response to their changing needs. For more information, see:

<https://parents.education.govt.nz/primary-school/schooling-in-nz/different-types-of-primary-and-intermediate-schools/>.

Most schools in New Zealand are owned and funded by the state (state schools). They teach the national curriculum and are secular (non-religious). Designated character schools and State-integrated schools provide different options that cater to specific religious beliefs, ethnic groups, and ideas about teaching and learning.

Kaupapa Māori education options provide indigenous education pathways that any New Zealand student can enrol in. Kaupapa Māori education options include Kura kaupapa Māori that are affiliated to Te Rūnanga nui o ngā Kura Kaupapa Māori o Aotearoa²⁰ and operate in accordance with the philosophy of Te Aho Matua; Kura-a-Iwi that are affiliated to Ngā Kura ā-Iwi o Aotearoa²¹; and unaffiliated Kura Māori.

There are a number of early learning services in New Zealand that build knowledge of te reo Māori (language) and tikanga (culture). All early learning services are licensed or certificated by the Ministry of Education.

Kōhanga reo are the predominant group of early learning services offering total Māori immersion early learning. Each kōhanga reo is affiliated to, yet organisationally independent of, a national body - Te Kōhanga Reo National Trust. The Trust is the licence holder for the 415 kōhanga reo licensed under the Education (Early Childhood Services) Regulations 2008. Kōhanga reo is often referred to as a movement and reflects a move by Māori in the 1980s to take control of, and plan for, the survival of their language. The movement is seen as being focused as much on Māori development as the mainstream (Western) concept of early childhood education.

Māori immersion education and care services (also known as puna reo) are kaupapa Māori education and care services that provide their curriculum in te reo Māori. Kaupapa Māori refers to education that is in te reo Māori and reflects te ao Māori. Māori immersion education and care services are teacher-led and

²⁰ <https://runanga.co.nz/>

²¹ <https://www.kuraaiwi.nz/>

staffed predominately by certificated teachers. These services sit outside the Te Kōhanga Reo National Trust and are licenced under the Education (Early Childhood Services) Regulations 2008.

Specialist and distance schools including Te Aho o Te Kura Pounamu o Aotearoa – the distance education school; Day Specialist Schools; Ko Taku Reo Deaf Education; Blind and Low Vision Education Network, New Zealand Residential Specialist Schools; and Regional Health Schools provide options and support to respond to the specific needs of some learners. As well as providing specialist education at a base school, many specialist schools offer outreach services and operate satellite units on local school sites.

Private (or independent) schools charge fees, but also receive some funding from the government. They are governed by their own independent boards and must meet certain standards to be registered with the Ministry of Education. By enabling private schools, New Zealand respects the right of parents / legal guardians to choose schools, other than those established and funded by the State, that provide education (including religious and moral education), that conforms to their own convictions.

Schools may operate special programmes or units that provide different pathways for students, that focus on identity, language, and culture (such as rumaki reo units and Pacific bilingual and immersion units); vocational pathways; and military service.

Alternative education, including Alternative Education contracted providers, Activity Centres, and some Te Aho o Te Kura Pounamu o Aotearoa enrolment gateways, focus on reengaging students with learning where traditional pathways have not been successful. Teen Parent Units have also been established to support teenage students who are parents or pregnant to stay engaged with the education system and support gender equality.

The Government is seeking to establish Charter schools as another type of state funded school. Charter schools provide educators with greater autonomy. They can, with some restrictions, set their own curriculum, hours and days of operation, and governance structure. They also have greater flexibility in how they spend their funding as long as they reach the agreed performance outcomes. The autonomy Charter schools have creates diversity in New Zealand's education system, including for students who are underachieving or disengaged from the current system.

See 1.1 and following content for education measures specific to gender equality, ethnic minority learners, indigenous learners, people on the move, disabled learners and learners experiencing economic hardship.

Teachers are trained on inclusive education and to value diversity

The Initial Teacher Education (ITE) Programme Approval, Monitoring and Review Requirements (2019) outline that ITE graduates need to have the necessary pedagogical knowledge to identify, understand and manage the increasing diversity and complexity of students' learning needs. One of the programme's approval principles is that assessments across ITE programmes need to capture the student teacher's capability to work effectively with diverse learners, in multiple settings, and across multiple curriculum contexts.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

The last four years have been a challenge with the ongoing effects of the COVID-19 pandemic and extreme weather events. Our education system has not been immune to this. These create new challenges and additional pressures for all areas of the education system, with closure of places of learning for significant periods of time and ongoing effects of learner and staff sickness. It has highlighted the equity issues that have existed within the system, such as access to technology and online learning, with effects being felt for many years to come.

Attendance rates continue to fall. There have also been increases in the number of learners who are moderately absent (missing two to three days a fortnight) or chronically absent (missing three or more days a fortnight). Low attendance can be a symptom of many factors including:

- Societal issues such as housing affordability, insecure housing, family violence and poverty, and a lack of systemic support to address these pressures.
- Within-school factors such as bullying and racism, poor teacher-learner or teacher-family relationships, learners not finding the curriculum engaging or culturally responsive.

- Family-level factors such as negative intergenerational experiences in the education system, lack of resources for transport, food or school-related materials, and physical and mental health problems.
- Challenges posed by disruptions to learning caused or exacerbated through COVID-19, extreme weather events.

The Government has set a target of 80% of students present for more than 90% of the term by 2030. An Attendance Action Plan has been announced with an evolving set of actions that work together and support existing efforts to shift attitudes and behaviours to lift regular school attendance. Recent actions include:

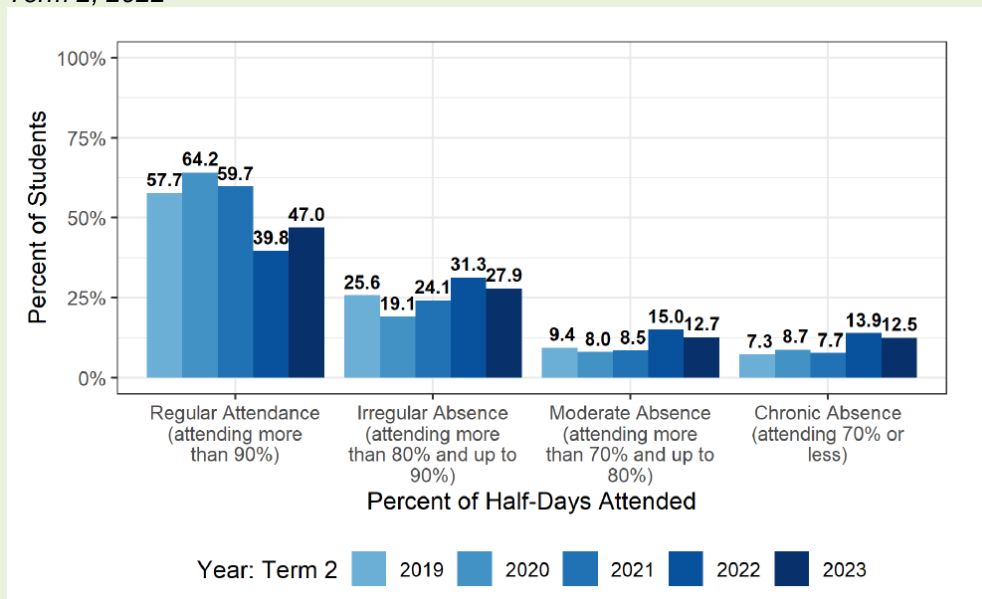
- a public awareness campaign on the importance of regular attendance
- the launch of an attendance dashboard and regular reporting of daily attendance figures so we all know the number of students attending each day and keep focused on increasing regular attendance.
- sharing with schools and parents refreshed health guidance to support educationally-powerful conversations about the importance of attendance.

For more information, see: <https://www.education.govt.nz/our-work/overall-strategies-and-policies/increasing-school-attendance/#:~:text=The%20attendance%20action%20plan%20is,the%20importance%20of%20regular%20attendance,>

Attendance in primary and secondary

In Term 2 2023 47.0% of students met the criteria for regular attendance (attending more than 90% of the term). This is an increase of 7.2 percentage points from Term 2 2022 (39.8%). This remains lower than Term 2 2019 (pre-COVID-19) when 57.7% of students were regularly attending. Chronic absence (attending 70% or less of the term) decreased to 12.5% in Term 2 2023 from 13.9% in Term 2 2022 (1.4 percentage points). This remains higher than Term 2 2019 (before the COVID-19 pandemic).

Figure: All attendance categories other than regular attendance decreased in Term 2 2023, compared to Term 2, 2022



Student Attendance by Sector*, Term 2, 2018-2023

Regular attendance has increased for students of all year levels in 2023. In Term 2 2023, compared with Term 2 2022, primary students had a larger increase in regular attendance rates than secondary students. The percentage of students meeting the criteria for regular attendance tends to decline through the intermediate and secondary years. In 2023, 49.8% of primary students (year levels 1-8) met the criteria for regular attendance compared with 41.7% of secondary students (year levels 9-13), a difference of 8.1 percentage points. This difference is larger than in 2022, when the regular attendance rate of primary students was 41.5% while the rate of secondary students was 36.5%, a difference of 5.0 percentage points. For more information, see: <https://www.educationcounts.govt.nz/statistics/attendance>.

Year	Sector	Students Attending Regularly (%)	Students Attending 80-90% (%)	Students Attending 70-80% (%)	Students Attending 70% or less (%)
2023	Primary	49.8	28.2	11.9	10.1
	Secondary	41.7	27.2	14.0	17.0
	All	47.0	27.9	12.7	12.5
2022	Primary	41.5	32.1	14.7	11.7
	Secondary	36.5	29.8	15.6	18.1
	All	39.8	31.3	15.0	13.9
2021	Primary	63.6	23.7	7.5	5.2
	Secondary	52.5	25.0	10.3	12.2
	All	59.7	24.1	8.5	7.7
2020	Primary	66.9	18.3	7.4	7.4
	Secondary	59.2	20.5	9.1	11.2
	All	64.2	19.1	8.0	8.7
2019	Primary	60.1	25.7	8.5	5.6
	Secondary	53.0	25.5	10.9	10.6
	All	57.7	25.6	9.4	7.3
2018	Primary	67.3	21.7	6.7	4.4
	Secondary	57.2	24.1	9.6	9.2
	All	63.8	22.5	7.7	6.0

* Sector defined by student year level. Primary refers to students in years 1-8, and Secondary to students in years 9-13.

* Students with missing year levels have been excluded.

* Year 13 includes students in years 13, 14, 15.

Other relevant general measures, including gender equality

- ☒ Legislation provides for gender equality in education
- ☒ Policy measures aim to enhance gender equality
- ☐ Gender-responsive education sector planning is undertaken
- ☒ Providing positive or affirmative action measures
- ☐ Providing financial incentives and fellowships
- ☒ Teachers are trained (initial and in-service) on gender equality
- ☒ Teachers are trained to combat stigmatisation²²
- o Other:
- ☒ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education
- ☒ Re-entry programmes for young mothers are provided for
- ☒ Ensuring safe and adequate gender-sensitive sanitation facilities²³
- ☒ Curricula are rid of all stereotypes²⁴ and bias
- ☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM)
- ☒ Ensuring gender parity in technical and vocational training education and training (TVET)

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The Education and Training Act 2020 says that schools must give effect to relevant student rights in the Human Rights Act 1993 and the New Zealand Bill of Rights 1990. A school's Board of Trustees must take all reasonable steps to eliminate racism, stigma, bullying, and any other forms of discrimination within the school.

Curriculum and assessment measures recently introduced are intended to lift student achievement and close the equity gap, so that all students are experiencing quality learning regardless of their background. These include the 'hour a day' requirement of dedicated teaching time for reading/pānui, writing/tuhituhi, and maths/pāngarau, the *Make It Count* maths action plan, and the implementation of structured teaching

²² 'Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them' (Cambridge Dictionary).

²³ 'Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' (UNGEI blog post, Gender-sensitive sanitation, 2018)

²⁴ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

approaches to literacy and te reo matatini. Consistent assessment tools have also been recently announced which will provide regular and coherent student progress information.

Schools cannot refuse to enrol learners because of their gender identity. They have the right to freedom from discrimination on the grounds of 'sex', which includes gender and gender identity. Single-sex schools can refuse to enrol students based on gender, and this is not treated as discriminatory.

A range of initiatives have been introduced to increase the accessibility of educational achievement and improve education outcomes for women and girls. This includes providing period products to menstruating students and supporting pregnant and parenting students.

Ikura | Manaakitia te whare tangata | Period Products in Schools is an opt-in initiative which provides access to free period products for children and young people in participating state and state-integrated schools and kura across New Zealand. This is intended to reduce barriers to education, promote positive gender norms, improve attendance and engagement, and mitigate the impacts of socioeconomic disadvantage. Schools and kura have been able to access products for students since June 2021. Budget 2024 provided \$14 million over four years to support the ongoing delivery of the programme. For more information, see <https://www.education.govt.nz/our-work/overall-strategies-and-policies/wellbeing-in-education/ikura-manaakitia-te-whare-tangata-period-products-in-schools/>.

There are 25 Teen Parent Units (TPUs) in New Zealand, which are attached to an established state or state integrated secondary school. An Early Childhood Education (ECE) centre, which caters for the children of teen parents, is located either onsite or close by. TPUs provide wraparound support to pregnant or parenting learners to minimise the barriers to education. An Individual Learning Programme is developed based on each learner's individual needs. TPUs provide secondary education that results in successful transitions to further education, training or employment. For more information, see: <https://alternativeeducation.tki.org.nz/Teen-parent-units>.

Relationships and sexuality education (RSE) is part of The New Zealand Curriculum and is key area of learning within Health and Physical Education, and Te Marautanga o Aotearoa within the Hauora learning area. It is compulsory for New Zealand schools to teach relationships and sexuality education up until the end of year 10. There is a diverse range of opinions about what and how RSE should be taught, and this is currently being debated both in New Zealand and world-wide. The Education Review Office is undertaking research into how RSE is being taught in schools to understand what is working well and where improvements can be made. The relationships and sexuality education guidelines (2020) will be reviewed in line with the upcoming refresh of the health and physical education learning area in 2025.

Between 2019 and 2021, the Government funded research to better understand the barriers and to boost the number of women in trades. The TEC also undertook a Vocational Education and Training marketing campaign aimed to raise the profile of vocational education so that more people view it as a desirable pathway into employment. The campaign includes dedicated targeting of women and showcases women in non-traditional roles. There are also industry-led initiatives that include deliberate messaging to women about trades careers and training opportunities. Some of these campaigns have received developmental funding from the government.

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

New Zealand's education system places an emphasis on inclusivity and equity, ensuring that all individuals, regardless of their gender, sexuality, background, or abilities, have equal opportunities to access quality education. New Zealand has a long-standing commitment to empowering women and girls in education. Women have made important advances in education over the last few decades. However, there are still significant disparities in educational attainment for marginalised groups such as Māori and Pacific, disabled, and rural women and girls.

Research shows that young mothers are less likely to finish secondary school and that leaving school with less than NCEA level 2 (or equivalent) qualification has the biggest impact on young mothers who have a 60% chance of being in long term limited employment.

- Does the legal minimum age for marriage conform to international standards (18 years) ²⁵:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☒ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

In 2018, the Marriage (Court Consent to Marriage of Minors) Amendment Bill was passed²⁶. This requires 16- and 17-year-olds who want to marry, enter into a civil union, or enter into a de facto relationship to obtain the consent of a Family Court Judge.

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

- | | |
|--|---|
| ☒ Legislation provides for the right to education of national minorities | ☒ Teachers are trained on intercultural education |
| ☒ Policy measures aim to enhance the right to education of national minorities | ☒ Teachers are trained to combat stigmatisation ²⁷ |
| ☒ Policy elaboration includes consultations with local communities | ☒ Multilingual and intercultural education are supported |
| ☐ The right to carry out their own educational activities is legally guaranteed for national minorities | ☐ Native language instruction is ensured for national minorities |
| ☐ Educational standards are established for educational institutions run by national minorities | ☒ Adapting curricula and teaching and learning methods to their needs for national minorities |
| ☒ Positive or affirmative action measures are provided for national minorities | ☒ Curricula are rid of all stereotypes ²⁸ and bias |
| ☒ Financial incentives and fellowships are provided for national minorities | |

-Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The Education and Training Act 2020 sets out the right to free enrolment and free education in any state school for every person who is not an international student aged 5–19. It explicitly provides that people who have special education needs, whether because of disability or otherwise, have the same rights to enrol and receive education at State schools as people who do not.

Changes to the national curriculum that are currently underway will mean that The New Zealand Curriculum, which is used in English-medium state schools, and Te Marautanga o Aotearoa, which is used in Māori language education pathways support and empower all students to learn and achieve personal excellence, regardless of their individual circumstances. The changes will be grounded in six overarching design principles:

1. Underpinned by the Science of Learning
2. Knowledge-rich (selective, coherent, carefully sequenced, and specific and clear)
3. Inclusive of evidence informed teaching practices
4. Clear and easy to use
5. Internationally comparable
6. Supporting the development of key competencies.

²⁵ Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

²⁶ <https://legislation.govt.nz/bill/member/2017/0256/latest/whole.html#:~:text=The%20bill%20aims%20to%20prevent,will%20to%20enter%20a%20marriage>

²⁷ Supra note 15.

²⁸ Supra note 16.

Te Marautanga o Aotearoa is also underpinned by the first five principles listed above and two different design principles – that it is supportive of kura and Māori medium settings to deliver on their designated or special character and support the development of key learner dispositions.

Te reo Māori and New Zealand Sign Language are official languages of New Zealand. English is the language used by the majority of the New Zealand population and is the language of instruction in most schools. Te reo Māori is the language of instruction in kura and Māori language immersion and bilingual settings in English medium schools. The diversity of the New Zealand population means that a variety of other languages are also spoken in New Zealand. The Government also recognises the need to support Pacific languages in New Zealand, including the languages of the Pacific realm countries Cook Islands, Niue, and Tokelau. Pacific peoples and their identities, languages and cultures have a special status within New Zealand society, informed by New Zealand's geographic position as a country in the Pacific, and different legal obligations and expectations between individual Pacific nations and New Zealand. The growing potential impact of climate change and its threat to the physical nationhood of some Pacific countries also shapes the nature of New Zealand's relationship with the Pacific.

Pacific people make up one of the largest ethnic groups in New Zealand. The Action Plan for Pacific Education 2020–2030 maps the Government's commitment to transforming outcomes for Pacific learners and families. It signals how early learning services, schools and tertiary providers can achieve change for Pacific learners and their families. The Action Plan for Pacific Education was refreshed in 2023. It captures the Government's current investment, more actions and captures our focus on Pacific languages in education. The 2023 refresh of the plan includes:

- A strengthened focus on Pacific bilingual and immersion education and Pacific languages in education through a change to key shift 1
- The next set of Government actions that will further contribute to achieving the vision and 5 key shifts for Pacific education success.

For more information, see: <https://www.education.govt.nz/our-work/overall-strategies-and-policies/action-plan-for-pacific-education/#refresh-2023>.

Pacific languages are reflected in the New Zealand education system through the valuing, promotion and integration of identity, language, and culture, and enabling second language learning of Pacific languages and Pacific bilingual and immersion education, both in the early learning and schooling sectors. Tapasā, the cultural competencies framework for teachers of Pacific learners, identifies understanding and valuing the identities, languages, and cultures of Pacific languages as a key competency. This is supported by the ongoing development of curriculum resources in Pacific languages, including the development of storybooks and teaching materials in Gagana Tokelau and Vagahau Niue. For more information, see: <https://pasifika.tki.org.nz/Pacific-languages/Gagana-Tokelau> and <https://pasifika.tki.org.nz/Pacific-languages/Vagahau-Niue>.

Parent involvement in learning

Many schools appoint multi- or bi-lingual teacher aides from within the school/parent community. As well as helping with students' learning, these staff support teachers' understanding of language and cultural practices. It strengthens the school's contact with different ethnic groups and daily contact alerts school leaders to potential issues and successes. In some cases, parents acting in support staff roles enriches their understanding of the New Zealand curriculum/schooling system and teaching approaches.

Tailored information-sharing sessions

Some schools hold information evenings and presentations targeted for specific ethnic groups or languages to share curriculum information or preparation for Education Outside the Classroom activities to groups of parents. These presentations include translators, cultural practices, or cultural content. In some regions, Ministry of Education Community Learning Hubs have been set up. These provide targeted sessions for parents and their children about aspects of the New Zealand education system to empower them in their learning journey. The Hubs offer the opportunity for schools to build relationships and learn about and strengthen connections to their ethnic communities.

English for Speakers of Other Languages (ESOL) support

A broad range of supports are available for teachers to work more effectively with migrant background and former refugee students. Supports include:

- Guidance and advice
- Professional development
- Professional learning clusters around the country

- Online resources

ESOL funding is for migrant background and former refugee students whose English language proficiency is below a specific benchmark for their year level.

Funding is \$780 per student in Years 0 – 8 and \$1000 per student in Years 9 – 13 per year.

Schools use funding for additional specialist teachers, teacher aides, and resources.

In March 2024 funding was for 78,769 students in 1,712 schools. Students represent 183 different ethnic groups.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

New Zealand is ethnically diverse and is rapidly becoming more so. In schools across the country more learners are from ethnic communities. Learners from ethnic communities can encounter racism, isolation, and lack of cultural understanding and education does not always reflect what New Zealand's ethnic communities want.

The 2023 Education Review Office (ERO) report, *Education For All our Children: Embracing Diverse Ethnicities*, advised that learners from ethnic communities experience racist bullying, which too often is not taken seriously by their school, they often feel like they do not belong, education provision does not always reflect what families and learners from ethnic communities want, and they face barriers to engaging with schools, many learners from ethnic communities go on to tertiary study, but pathways are confusing, and, for some, choices are unfairly constrained by teachers' biases. For more information, see: <https://ero.govt.nz/our-research/education-for-all-our-children-embracing-diverse-ethnicities-summary>.

Indigenous people:

- | | |
|--|---|
| <ul style="list-style-type: none"> ☒ Legislation provides for the right to education of indigenous people ☒ Policy measures aim to enhance the right to education of indigenous people ☒ Policy elaboration includes consultations with local communities ☒ The right to carry out their own educational activities is legally guaranteed for indigenous people ☒ Educational standards are established for educational institutions run by indigenous people ☒ Positive or affirmative action measures are provided for indigenous people | <ul style="list-style-type: none"> ☒ Financial incentives and fellowships are provided for indigenous people ☒ Teachers are trained on intercultural education ☒ Teachers are trained to combat stigmatisation²⁹ ☒ Multilingual and intercultural education are supported ☒ Native language instruction is ensured ☒ Adapting curricula and teaching and learning methods to their needs for indigenous people ☒ Curricula are rid of all stereotypes³⁰ and bias |
|--|---|

o Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The New Zealand education system seeks to respond to Māori learners within the context of their whānau; ensure that Māori learners are free from racism, discrimination, and stigma; that we recognise that Māori are diverse and need to be understood in the context of their diverse aspirations and lived experiences; that identity, language and culture matter for Māori learners; and that Māori should be able to exercise their authority and agency in education.

Government Targets and Priorities for Attendance and Achievement

The Minister has asked the Ministry of Education to develop a Māori Education Action Plan.

As mentioned, the New Zealand Government has set ambitious targets for attendance and achievement to provide every learner with the best possible education. The targets commit to:

- increased student attendance, so that 80% of students are present for 90% of the term; and
- more students at expected curriculum levels, so that 80% of Year 8 students are 'at or above' the expected curriculum level for their age in reading, writing and maths by December 2030.

²⁹ Supra note 15.

³⁰ Supra note 16.

Māori learners make up a significant and growing proportion of all learners within the schooling system. If we do not achieve these targets for Māori learners, we will not achieve our targets for attendance and achievement. It is acknowledged that there is a lot more work that needs to be done to bridge the gap for Māori learners. That is why a dedicated and enduring approach is required. We also know that when we get things right, Māori engagement and achievement can be accelerated exponentially.

The data shows that currently, there is a pronounced equity gap in literacy, maths and science achievement, which adversely affects Māori learners. This is in part due to a devolved education system and inconsistent curricula and assessment and aromatawai practices. Currently the education system also lacks the tools to gather aromatawai information for learners in te reo Māori education pathways. This limits the ability to provide insights into the effectiveness, equity, and accountability of the education system to learner outcomes in te reo Māori education settings. Changes to the national curriculum, consideration of a national monitoring system for te reo Māori education pathways, and consistent assessment and aromatawai approaches seek to address this equity gap.

An example of an initiative that has shown to be impactful for Māori ākonga in English medium education is the Better Start Literacy Approach (BSLA); this is based on a structured literacy approach but has been developed for an Aotearoa New Zealand context. Growth relative to baseline skills at school entry is particularly high for Māori and Pasifika children. The relative change in foundational skills is approximately 1.2 to 2.2 times greater for Māori and Pasifika as compared to NZ European learners (reported in May 2024). Teachers are encouraged to develop their own personal culturally responsive teaching practices through BSLA. It is also a strengths-based approach where teachers are encouraged to focus on what ākonga are achieving in response to their classroom teaching and ākonga next steps for learning.

Education legislation includes provisions that recognise and respect the Crown's responsibility to give effect to Te Tiriti/the Treaty. The Ministry of Education considers Te Tiriti/the Treaty implications in day-to-day work and partner with Māori so that they can participate as tangata whenua (people of the land) in our advice to government on how we can achieve better outcomes for Māori learners, whānau, hapū, iwi and Māori communities.

The Māori language (te reo Māori) is a taonga. There have been efforts to encourage its greater usage in New Zealand. Te reo Māori and tikanga Māori expectations are part of the whole education system including in regulations, strategies, policies and services such as Section 4 of the Education and Training Act 2020, Ka Hikitia – Ka Hāpaitia, Tau Mai te Reo. There has been a continued increase in participation in Māori language in education, including an increase in the number of students participating in Māori-medium education. There has also been an increase in participation in Māori language in English-medium education. For more information, see: <https://www.educationcounts.govt.nz/statistics/maori-language-in-schooling#:~:text=As%20at%201%20July%202023,%2C%2095.8%25%20identify%20as%20M%C4%81ori.>

Ka Hikitia – Ka Hāpaitia

To ensure that Māori can enjoy and achieve education success as Māori, the Māori Education strategy (Ka Hikitia – Ka Hāpaitia) sets out how government agencies will work with education services to achieve system shifts in education and support Māori learners and their wider families and communities to achieve excellent and equitable outcomes (refer above).

Te Marautanga o Aotearoa (New Zealand's curriculum for students learning through te reo Māori), the Ako Framework and Aromatawai are designed for primary and secondary kura and settings that deliver learning and teaching programmes in te reo Māori – Māori-medium and kaupapa Māori education pathways.

The redesign of Te Marautanga o Aotearoa

Te Marautanga o Aotearoa is the national curriculum for schools that deliver learning programmes from year 0 to year 13+ through the Māori language. Te Marautanga o Aotearoa incorporates a vision and principles for the revitalisation of te reo Māori and advances educational excellence for every young Māori learner. Te Marautanga o Aotearoa aspires to develop successful learners who will grow as competent and confident learners, effective communicators in the Māori world, secure in their identity and sense of belonging.

Te Marautanga o Aotearoa is being redesigned to reflect a more indigenous curriculum, grounded in te ao Māori. It will be knowledge-rich, grounded in ako (to teach and to learn) and the science of learning, and

clear about what to teach, and by when, for each year of schooling. Te Marautanga o Aotearoa highlights the key knowledge, skills, learner dispositions, and values that will prepare learners to operate successfully and confidently in te ao Māori and the wider world. For more information, see: <https://kauwhatareo.tahurangi.education.govt.nz/mi/>.

The Ako Framework

The Ako Framework outlines the principles, approaches, and high-quality teaching practices to support learning for those kura and schools using Te Marautanga o Aotearoa to guide their learning and teaching (ako) programmes. It will become part of the redesigned Te Marautanga o Aotearoa so that evidence-based teaching practice sits alongside the knowledge, skills and capabilities being taught.

Aromatawai

Aromatawai as a kaupapa Māori approach provides relevant ways to monitor progression and development of learning that are mutually valued by learners, whānau, hapū and iwi in collaboration with their kura and community. With the redesign of Te Marautanga o Aotearoa, te reo Māori education pathways will be supported and guided by authentic indigenous ways of monitoring learner progress, achievement, and success. For more information, see: <https://kauwhatareo.govt.nz/en/kaupapa/nga-tini-mata-o-te-aromatawai/>.

Te Ahu o te Reo Māori

Te Ahu o te Reo Māori was designed to strengthen the te reo Māori capability and proficiency of the education workforce to support early learning services, kura and schools to integrate te reo Māori into the learning of all learners in New Zealand and support the growth of te reo Māori and mātauranga Māori (Māori knowledge). Te Ahu o te Reo Māori was made available across all regions in New Zealand in 2021, it is now being discontinued.

For more information, see: <https://kauwhatareo.tahurangi.education.govt.nz/mi/kauwhata-reo-online/engage/ministry-initiatives/te-ahu-o-te-reo-m-ori/5637154327.c>

Huia Kaimanawa – Māori First Time Principals and Emerging Māori Leaders

The First Time Māori Principals and Emerging Māori Leaders programmes are designed to support beginning Māori principals and emerging Māori leaders in ways that embody Te Tiriti honouring ways of working. Both contracts fall under the umbrella of Huia Kaimanawa, a recently gifted name.

Māori Achievement Collaboratives (MAC)

The Māori Achievement Collaboratives (MAC) is a PLD programme delivered by principals for principals that focusses on changing education outcomes for Māori ākonga. It aims to build the capability of schools and kura to inquire into, recognise and work through barriers impeding improved educational and cultural outcome for Māori in partnership with ākonga, whānau, hapū and iwi.

ECE

As mentioned above, there is a variety of early learning services and kōhanga reo available in New Zealand. Children can attend from birth in the Kōhanga Reo total immersion te reo Māori or Puna Reo.

School

As mentioned above, kaupapa Māori and Māori-medium education options provide indigenous education pathways that any New Zealand student can enrol in.

Wānanga

Wānanga are tertiary education institutions which Māori have been instrumental in establishing. These institutions play the role of guardian of Māori knowledge, Māori language, and Māori customs within the tertiary education sector. In 2023, New Zealand established a Framework to create a new fit-for-purpose administrative settings for these institutions to recognise their strength, leadership and unique role.

Relationships with iwi

Iwi and community organisations can play an important role in brokering stronger relationships at the local level. The Ministry of Education has a range of relationships with iwi, from formal through to regular one-on-one meetings. The Ministry of Education also works with the Mātauranga Iwi Leaders Group (MILG) which provides a collective voice for iwi on education matters. It has particular focus on building whānau learner capability, targeted support for mental health and learners with additional learning needs, and pathways for re-engaging young people back into education.

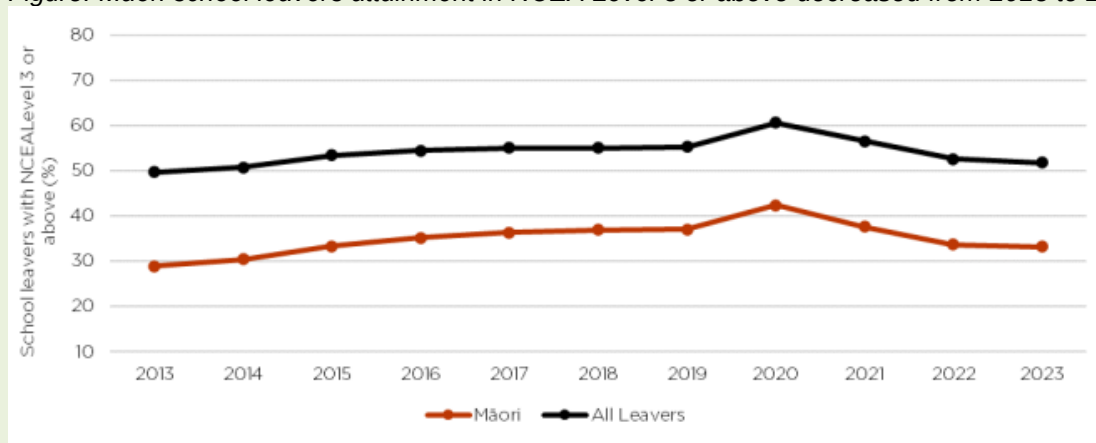
- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

Māori learners achieve a wide range of outcomes in our education system. Some achieve excellent results, some experience poor education and wellbeing outcomes. On average, however, Māori learners experience worse outcomes than other learners. This is a longstanding trend as the education system has historically underserved Māori learners. There is a significant exception to this rule. Where comparable data is available, Māori learners in Kaupapa Māori and Māori-medium Education consistently experience better outcomes than their peers in English-medium education. Access to Kaupapa Māori and Māori-medium pathways across sectors needs to be improved with equitable investment, support, and resources.

School leavers attainment for Māori learners

In 2023, 5,583 Māori school leavers attained NCEA Level 3 or above, 33.2% of all Māori school leavers. Compared to 2022, this was a 0.5 percentage points decrease. Between 2020 (when the rate was at its peak) and 2023, the proportion of Māori school leavers with NCEA Level 3 or above decreased by 9.2 percentage points; and by 3.9 percentage points since 2019. Māori female school leavers are more likely than Māori male school leavers to attain NCEA Level 3 or above. In 2023, 35.8% of Māori female school leavers attained NCEA Level 3 or above compared to 30.6% of Māori male school leavers. The NCEA Level 3 or above attainment rates for Māori school leavers predominantly learning in te reo Māori are similar to the rates for all school leavers.

Figure: Māori school leavers attainment in NCEA Level 3 or above decreased from 2013 to 2023



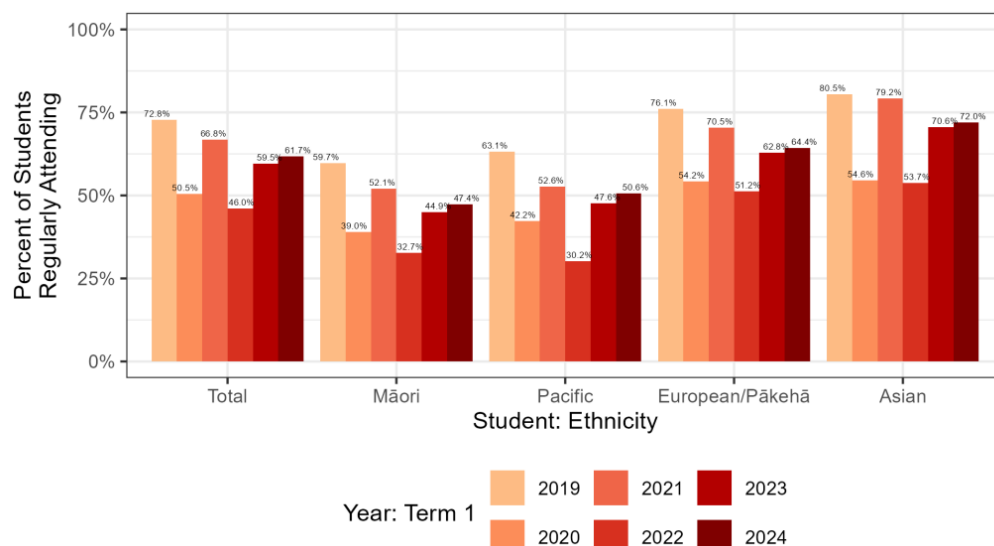
For more information, see <https://www.educationcounts.govt.nz/statistics/school-leavers>.

Māori learners attendance

Attendance is linked to both student wellbeing and to attainment. Evidence suggests that there is no “safe” level of non-attendance.

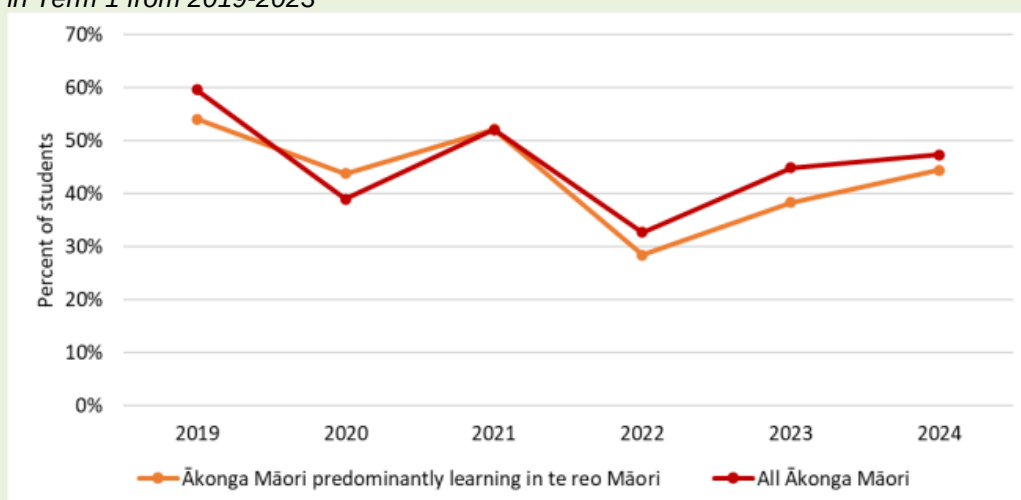
From Term 1 2023 to Term 1 2024, regular attendance rates increased across all ethnicities. In Term 1 2024, 47.4% of ākonga Māori were attending regularly, an increase of 2.5 percentage points; 50.6% of Pacific students were attending regularly, an increase of 3.0 percentage points; 72.0% of Asian students were attending regularly, an increase of 1.4 percentage points; and 64.4% of European/Pākehā were attending regularly, an increase of 1.6 percentage points.

Figure: Regular attendance across all ethnicities in Term 1 from 2019-2023



Attendance was reported for 189,617 Māori learners. Of these learners, 4.4% (8,405)³¹ were in kura/schools where teaching and learning is predominantly in te reo Māori. The regular attendance rate for Māori learners predominantly learning in te reo Māori increased by 6.1 percentage points, from 38.3% in 2023 to 44.4% in 2024. In Term 1 2024, the difference in regular attendance rates for all Māori learners compared with Māori learners predominantly learning in te reo Māori has decreased to 3.0 percentage points. Regular attendance for Māori learners predominantly learning in te reo Māori, and all Māori Learners in Term 1 from 2019-2023.

Figure: Regular attendance for ākonga Māori predominantly learning in te reo Māori, and all ākonga Māori in Term 1 from 2019-2023



For more information, see: <https://www.educationcounts.govt.nz/statistics/attendance>.

Sense of belonging is crucial for Māori to succeed as Māori. The education system needs to better reflect and foster Māori identity, culture, and values in all their diversity. Education settings should support the holistic wellbeing of Māori learners and their whānau by providing physically, culturally, emotionally, and spiritually safe learning environments and spaces.

Teacher bias and low expectations are significant issues in New Zealand, and this has a significant impact on Māori. There is a shortage of Māori language teachers and kaupapa Māori and Māori-medium teachers, and the Māori language capability of the existing workforce is limited. The education workforce needs to be representative of and responsive to Māori. Māori staff need to be better supported and recognised for their work. More Māori teachers and more quality professionals are also required, particularly in the areas of te reo Māori provision, learning support and social services. It is important to have culturally responsive teachers who have consistent expectations for all learners.

³¹ This is a subset of all ākonga Māori predominantly learning in te reo Māori, based on ākonga Māori attending kura/schools where all students are predominantly learning in te reo Māori (more than 50% of the time). It does not include ākonga Māori predominantly learning in te reo Māori who are attending schools where the medium of education across the school is predominantly English

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations³²:

- | | |
|--|---|
| <ul style="list-style-type: none"> ☒ Legislation provides for their right to education ☒ Policy measures aim to enhance their right to education ☒ Inclusion in mainstream schools is ensured ☒ Positive or affirmative action measures are provided for ☒ All administrative barriers to access education are removed ☐ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers³³ are provided for ☒ Teachers are specifically trained to ensure their inclusion ☒ Teachers are trained to combat stigmatisation³⁴ ☐ Other: | <ul style="list-style-type: none"> ☒ Financial incentives and fellowships are provided for ☒ Auxiliary assistance is provided ☒ Multiple and flexible learning pathways³⁵ are provided ☒ Curricula are rid of all stereotypes³⁶ and bias ☐ Accelerated learning programmes are provided ☒ Non-formal and/or alternative education programmes are provided ☐ Language classes to newcomers are provided for ☒ Multilingualism and intercultural education are encouraged |
|--|---|

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

All children with domestic student status are eligible for publicly funded education services.

Section 10 of the Education and Training Act 2020 defines a domestic student as an individual who is a New Zealand citizen; or the holder of a residence class visa granted under the Immigration Act 2009 who satisfies the criteria (if any) prescribed by regulations made under subsection (2); or a person of a class or description of persons required by the Minister, by notice in the Gazette, to be treated as if they are not international students.

The Education (Domestic Students) Notice 2023 advises classes or descriptions that are required to be treated as if they are not international students. This includes refugees that meet the description laid out in the notice. For more information, see: <https://gazette.govt.nz/notice/id/2023-go4495>.

There is also policy provision for inclusion of school age children unlawfully residing in New Zealand to attend school with domestic status if they meet the criteria laid out by the Ministry of Education (see: <https://www.education.govt.nz/school/managing-and-supporting-students/enrolling-students/enrolling-students-as-domestic-students-who-are-living-unlawfully-in-new-zealand/#:~:text=Unlawfully%20means%20the%20student%20does,not%20holding%20a%20valid%20visa>). These students have access to the same teaching and learning experiences, and learning supports as all domestic students.

There are policy, funding, and auxiliary supports available for English for Speakers of Other Languages (ESOL), refugees, and migrants. For example, schools can access funding for ESOL to support learners directly in the classroom, Refugee Flexible Funding for additional resources that address barriers to refugee learners participating and achieving, and in some cases schools access provision for bilingual support. As at March 2024, schools received ESOL funding for 78,769 students. Of these students, 3% are refugees, 40% are New Zealand born children of migrant parents, and 57% are new migrants.

Refugees who arrive in New Zealand as part of our 1,500 per year quota stay onsite for 5-weeks at the Refugee Education Centre before being resettled into a community. During this time, learners of all ages are introduced to how the education system works and life more generally in New Zealand, English lessons, and what the national curriculum looks like.

³² Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2).

³³ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: UNESCO publication: Handbook on the right to education, 2018, p. 96.

³⁴ Supra note 15.

³⁵ Supra note 13.

³⁶ Supra note 16.

- Have specific measures been adopted for climate displaced persons?

o Yes ☒ No

- Please elaborate:

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

Learners and their families can encounter racism, isolation, and lack of cultural understanding and education does not always reflect what they want. Some children from a refugee background may have no memory of ordinary life and little knowledge about their own country, may have fallen behind in education or have never had any formal education. For some, the trauma of moving to a new country and learning a new language can be greater than previous traumas of war and refugee camps. Anecdotally, learners arriving in New Zealand with unidentified learning support needs adds pressure on the education system.

Each learner is unique, arriving at school with varying levels of English proficiency. Some have literacy in their home language, but not all. This diversity presents significant challenges for teachers. Professional development is available for teachers to upskill in ESOL pedagogies and cultural capability, but there remains a shortage of suitably qualified and experienced teachers to support the rapid growth of culturally and linguistically diverse students in schools.

People with disabilities:

- ☒ Legislation provides for their right to education
- ☒ Policy measures aim to enhance their right to education
- ☒ Inclusion in mainstream schools is ensured
Special schools are used as resource centers to inclusive schools
- ☒ Positive or affirmative action measures are provided
- ☒ Financial incentives and fellowships are provided

o Other

Mainstream teachers are specifically trained on disabilities

- ☒ Teachers are trained to combat stigmatisation³⁷
- ☒ Auxiliary assistance is provided
- ☒ Curricula and teaching and learning methods are adapted
- ☒ Curricula are rid of all stereotypes³⁸ and bias
- ☒ Education infrastructure and learning materials are adapted

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The right to inclusive education is set out in the Education and Training Act 2020. New Zealand schools have obligations to provide a quality education for all learners. Section 34 of the Education and Training Act 2020 says, "people who have special educational needs (whether because of disability or otherwise) have the same rights to enrol and receive education in state schools as people who do not". The Education and Training Act 2020 also requires schools to be inclusive of and cater for students with differing needs.

The New Zealand Disability Strategy is the government's strategy for realising the rights of disabled people as set out in the United Nations Convention on the Rights of Persons with Disabilities. The New Zealand Disability Strategy's vision is of a society that highly values the lives and continually enhances the full participation of disabled people. It provides a framework to guide government agencies when making policy and services affecting disabled people. For more information, see: <https://www.odt.govt.nz/nz-disability-strategy>.

Schools must ensure that students' identities, languages, abilities, and talents are recognised and affirmed and that their learning needs are addressed, and that all students are offered a broad education that opens pathways to further learning. All students' learning, progress and achievement should be visible and reported back to family.

As mentioned, our curricula are underpinned by principles of inclusion. Schools using the New Zealand Curriculum need to make sure that their teaching and learning programmes support and empower all students to learn and achieve personal excellence, regardless of their individual circumstances and that

³⁷ Supra note 15.

³⁸ Supra note 16.

they are non-sexist, non-racist, and non-discriminatory. For more information, see: <https://nzcurriculum.tki.org.nz/Principles/Inclusion-principle>.

Learning support provision in education is based on understanding the needs and strengths of learners within the contexts in which they learn. Access to Ministry of Education learning support is not dependent on a formal diagnosis. Learning support service provision is flexible and supports learners within their individual learning environment. Schools and educators are supported with a range of Ministry of Education-led or funded services, supports, tools, resources, and websites to understand and support learners with the vast range of learning support needs. A wide range of measures are taken to support inclusive education, including targeted provision of resources in schools to those with additional learning support needs through the Ongoing Resourcing Scheme. Specialist schools provide outreach services to students enrolled at their local school and operate satellite units on local school sites as well as providing specialist education at a base school. For more information, see: <https://www.education.govt.nz/school/student-support/special-education/ors/>.

The Ministry of Education is developing a work programme for targeting effective learning support interventions for students with additional needs. Key features of the work programme will include:

- Creating a data-driven funding model that is focused on delivering high-quality interventions, programmes and supports
- Operational changes to make the system easier to navigate and to improve data collection
- Optimising the learning support workforce
- Building teacher capability to meet diverse learning needs
- Developing a network plan for specialist and alternative provision.

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

The ERO report *Thriving at school? Education for disabled learners in schools*, published in 2022, found that many disabled learners are still experiencing exclusion. Many disabled learners are being discouraged from enrolling in their local schools, asked to stay home due to resourcing issues, stood down, and are having to move schools. Too many students are also not supported to take part in wider school activities. Disabled learners are enjoying school, but too many are not progressing sufficiently. A significant proportion of disabled learners do not feel accepted or that they belong, some experience bullying. Disabled learners with more complex needs have poorer experiences and outcomes than other disabled learners.

The report found that areas that could be strengthened included:

- Disabled learners are not specifically or consistently identified in education data on learning and progress achievement
- Leaders in schools do not fully understand what is expected
- Many teachers are not confident in teaching disabled learners
- Guidelines and tools for disabled learners are not being used by teachers
- Partnerships with learners and their parents and whānau can be strengthened
- Support for disabled learners to move on from school is not well coordinated
- School buildings and facilities are mostly accessible but schools with older buildings still face challenges.

For more information, see: <https://ero.govt.nz/our-research/thriving-at-school-education-for-disabled-learners-in-schools>.

New research on disabled students' experiences in tertiary education shows that accessing support can be difficult and levels of support can be inconsistent, and that barriers to inclusion are common and power dynamics make it hard for disabled students to speak up. For more information, see: <https://www.educationcounts.govt.nz/publications/80898/243364>.

Students from poor households:

- | | |
|--|---|
| ☒ Financial incentives and fellowships for school enrolment are provided | ☒ Teachers are trained to combat stigmatisation ³⁹ |
| ☒ Positive or affirmative action measures are provided | ☒ Curricula are rid of all stereotypes ⁴⁰ and bias |

³⁹ Supra note 15.

⁴⁰ Supra note 16.

- ☒ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education
- ☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Education is free in New Zealand state schools and kura. There are a number of education initiatives that support learners experiencing economic hardship.

Equity Index

The Equity Index (EQI) is a statistical model that estimates the extent to which students at a school face socio-economic barriers to educational achievement. It was introduced in 2023 and allows for more accurately targeted resourcing to support schools with students facing greater socioeconomic disadvantage. For more information, see: <https://www.education.govt.nz/our-work/changes-in-education/equity-index/>.

Every year, each school is given an Equity Index number (between 344 and 569). To produce this number, the Equity Index takes into account the circumstances of the individual students actually attending each school and is refreshed each year, so that it stays up to date and continues to reflect changes in each school's community over time.

The EQI is used to support distributing funding to schools that have greater numbers of students experiencing socio-economic barriers to educational achievement. Schools with higher concentrations of students facing socioeconomic barriers receive more funding (called 'Equity Funding'), and they have discretion over how to use this to support their students. The Equity Index has also been used to support targeting funding in other programmes such as the school donations scheme and Ka Ora Ka Ako | Healthy School Lunches Programme.

An evaluation is underway to assess the influence of the Equity Index on school practices, student outcomes and community perceptions of schools. The evaluation is planned to run until 2026. The Equity Index itself will also be improved over time, as more administrative data that can be used in the Equity Index becomes available.

School donations scheme

Domestic students in New Zealand are entitled to free enrolment and education. However, schools may also seek voluntary donations from their students' families, caregivers, and communities for general or specific purposes. The school donations scheme was introduced in 2019 and is set out in Section 551 of the Education and Training Act 2020. The scheme is designed to alleviate the pressure and expectations on families, caregivers, and communities most likely to face financial pressures to pay school donations.

State and state integrated schools with an EQI value of 432 or higher will be able to opt into the scheme, reflecting the top 70% of schools whose students face the greatest barriers to achieving in education. Eligible schools may opt into the scheme and receive a pre-student grant payment on the condition that they do not ask for voluntary school donations from their students' parents and caregivers (except for overnight camps).

Ka Ora Ka Ako | Healthy School Lunches Programme aims to reduce food insecurity by providing access to food every school day to all learners in eligible schools. Ka Ora Ka Ako is targeted at the top 25% of schools and kura with learners facing the greatest socio-economic barriers according to the Equity Index. For more information, see: <https://www.education.govt.nz/our-work/overall-strategies-and-policies/wellbeing-in-education/free-and-healthy-school-lunches/>.

Ikura | Manaakitia te whare tangata: Period products in schools is the opt-in period products in schools' initiative which provides access to free period products for children and young people in participating state and state-integrated schools across New Zealand. For more information, see: <https://www.education.govt.nz/our-work/overall-strategies-and-policies/wellbeing-in-education/ikura-manaakitia-te-whare-tangata-period-products-in-schools/>.

The Ministry of Education also provides school transport assistance to help students overcome barriers to education and to help caregivers meet their responsibility to get their children to school. For more information, see: <https://www.education.govt.nz/school/property-and-transport/transport/sta-eligibility/#:~:text=If%20a%20student%20is%20eligible,a%20place%20on%20a%20vehicle.>

The Ministry of Education's Equitable Digital Access (EDA) initiative provided connectivity to over 40,000 families as part of Ministries COVID-19 response in 2020. Since then, the number has come down significantly as students graduated secondary school or moved house without having their connection transferred. For more information, see: <https://www.education.govt.nz/school/digital-technology/your-schools-ict-network/enabling-home-internet-access-for-your-community/>.

For information on ECE, refer to pre-primary education on page 25.

For information tertiary, refer to higher education on page 30.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

Despite efforts, achievement and attendance have declined. Schools in poorer communities have seen a bigger decline in attendance and participation. Economic factors such as stability of employment, housing, and affordable transport have an impact.

Falling attendance may also reflect families struggling to manage:

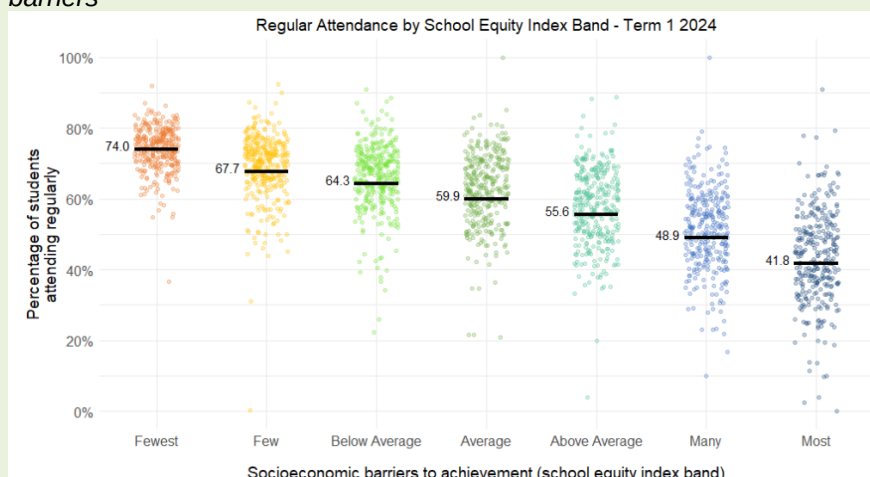
- Costs of living which are increasing in the wake of the global COVID-19 pandemic.
- Rising costs of accommodation – especially for low-income households.
- Increasing work intensity for parents.

While the proportion of families with children experiencing material hardship in New Zealand has been steadily trending down, about 11% of New Zealand families experience material hardship. For more information, see: <https://ero.govt.nz/our-research/missing-out-why-arent-our-children-going-to-school>.

School Leaver attendance for students with socio-economic barriers

Regular attendance for Term 1 2024 by school equity index band shows that, on average, regular attendance rates are higher for schools where the students face fewer socioeconomic barriers. There is significant variation in attendance rates for schools within each band. The variation in attendance rates is greater in bands where students have more socioeconomic barriers to achievement. The solid line in the graph below is the average percentage of students attending regularly for each band. Each coloured dot denotes an individual school within each band. There are some schools with 0% or 100% regular attendance rates. Most of these are small schools (fewer than 50 students).

Figure: Average regular attendance rates are lower for students in schools with higher socioeconomic barriers



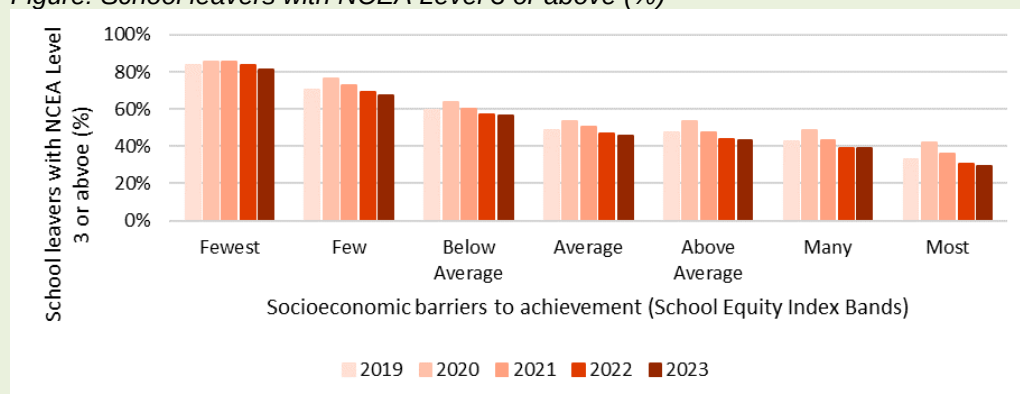
School Leaver attainment for students with socio-economic barriers

There is a strong gradient in school leaver attainment across School Equity Bands, with retention and attainment rates being consistently higher in schools where students experience fewer socioeconomic barriers and lower in schools where students experience more socioeconomic barriers. In 2023 there were larger decreases in attainment and retention for schools where students experience more socioeconomic barriers than for schools where students have fewer barriers to achievement. For example, compared to 2019, the attainment rates of NCEA Level 3 or above were lower across all School Equity Index bands in

2023, with the largest decreases for the school leavers from schools with above average socio-economic barriers (decreased 4.2 percentage points). In 2023, attainment of NCEA Level 3 or University Entrance standard by School Equity Index Bands was:

- 81.2% at schools with the fewest socio-economic barriers
- 67.3% at schools with few socio-economic barriers
- 56.2% at schools with below average socio-economic barriers
- 45.4% at schools with average socio-economic barriers
- 43.4% at schools with above average socio-economic barriers
- 38.7% at schools with many socio-economic barriers
- 29.4% at schools with most socio-economic barriers.

Figure: School leavers with NCEA Level 3 or above (%)



For additional information on Equity Index see: <https://www.educationcounts.govt.nz/data-services/guidelines/school-equity-index-bands-and-groups>

For additional information on School Leavers attainment please see: <https://www.educationcounts.govt.nz/statistics/school-leavers>.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁴¹ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education⁴². In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (several items may be ticked):

- | | |
|--|---|
| ☐ Prior to pre-primary education, ECCE services are free | ☐ ECCE services respect a child's need for early cognitive and social development, |
| ☒ Prior to pre-primary education, ECCE services are affordable | foundational learning, responsive care, |
| ☒ ECCE services are accessible on a non-discriminatory basis | nutrition, health, safety, protection, and play. |

- Please elaborate further on the measures taken:

New Zealand places a strong emphasis on early childhood education and care, recognising its role in preparing children for lifelong learning. Nearly all New Zealand children attend early learning services before starting school.

⁴¹ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

⁴² Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

There are a variety of early learning services and kōhanga reo⁴³ available in New Zealand. All early learning services and kōhanga reo are licensed or certificated by the Ministry of Education. This means that they must meet minimum standards of education and care to operate.

For more information, see: Education (Early Childhood Services) Regulations 2008

https://www.legislation.govt.nz/regulation/public/2008/0204/latest/DLM1412501.html?search=ts_act%40bill%40regulation%40deemedreg_education_resel_25_a&p=1

and: Education (Playgroups) Regulations 2008

https://www.legislation.govt.nz/regulation/public/2008/0205/latest/DLM1396401.html?search=ts_act%40bill%40regulation%40deemedreg_playgroup_resel_25_a&p=1.

The ECE Funding Subsidy and the 20 Hours ECE subsidy are the primary form of government funding for licensed ECE services. Licensed ECE services receiving the ECE Funding Subsidy, and the 20 Hours ECE subsidy must meet certain eligibility and funding conditions. Licensing and certification provisions are set out in regulations and in licensing criteria.

ECE services must always have a certain number of adults for the number of children attending. There are different ratios for children of certain ages and for different kinds of ECE services. These can be found in Schedule 2 of the Education (Early Childhood Services) Regulations 2008.

All licensed teacher-led early learning services must employ a specified number of qualified teachers and Persons Responsible, in order to meet licensing requirements. The specific requirements vary depending on the type of early learning service.

Licensed early learning Services and certified playgroups will be legally required to implement the principles, strands and learning outcomes of Te Whāriki, the early childhood curriculum, from 1 May 2024. For more information, see: <https://tewhariki.tahurangi.education.govt.nz/>.

- Is compulsory and free of charge pre-primary education available?

☐ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

☒ Pre-primary education is **not** compulsory.

o Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

☒ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

The Government provides universal subsidies for all children aged 0-5 that attend a licensed early childhood education service, supporting parents and caregivers to participate in the labour market. This is reflected in the high labour market participation of women with young children. The Ministry of Education subsidises children's attendance in early childhood education services through the Early Childhood Education Funding Subsidy, the 20 Hours Early Childhood Education subsidy, Equity Funding, and Targeted Funding for Disadvantage. This funding is paid directly to services and helps to reduce cost barriers so that children can participate in early childhood education. For more information, see: <https://parents.education.govt.nz/early-learning/early-childhood-education/20-hours-ece-2/>.

The Ministry of Social Development also provides Childcare Assistance that offsets the cost of early childhood education for low- and middle-income families. Childcare Assistance has three programmes: Childcare Subsidy, Guaranteed Childcare Assistance Programme and the Early Learning Payment. These have varying eligibility requirements and levels of support.

⁴³ Kōhanga Reo are services licensed by the Ministry of Education that build knowledge of te reo Māori (language) and tikanga (culture). Children can attend from birth in the Kōhanga Reo total immersion te reo Māori environment (meaning te reo Māori is the only language used). Parents and whānau are responsible for the management and operation of their Kōhanga Reo and are encouraged to take part in the daily programme.

The New Zealand government is also introducing a new support for families to help with the cost of early childhood education fees: FamilyBoost. This will be operational from 1 July 2024 and provides a tax rebate of 25% of a family's ECE fees, to a maximum of \$75 per week. For more information, see: <https://www.taxpolicy.ird.govt.nz/news/2024/2024-govt-familyboost>.

The Minister for Regulation has commissioned a review of the regulatory systems that affect the early childhood education sector. The review examines the regulatory systems for early childhood education, health, safety, child protection, food safety, buildings, and workplaces, as they apply to the early childhood education sector. The review is being led by the Ministry for Regulation. The Ministry of Education and the Education Review Office are providing support to the review team.

The review will provide a report to the Minister for Regulation (who is also the Associate Minister for Education responsible for early childhood education). It will be followed by a Cabinet paper seeking decisions on its recommendations and next steps.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- | | |
|--|--|
| ☒ Limited access | ☐ Poor learning outcomes |
| ☒ Issues of equity and inclusion | ☒ Low number of professionally trained educators |
| ☒ Poor quality programmes | ☐ Lack of support to families |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

Challenges include inequities in participation for groups such as Māori and Pacific children, children with disabilities, and children from lower socio-economic backgrounds. Participation rates for Māori, Pacific and children from low socio-economic status tracked below the national average.

Overall, the sector reports a lack of qualified teachers. This is a key barrier to establishing ECE services in rural and isolated communities. The scarcity of teachers fluent in Māori and Pacific languages is a particular challenge for recruitment by Māori and Pacific language services.

The quality of ECE matters for children's outcomes. Evaluations undertaken by ERO and the Ministry of Education's regulatory compliance work show some service providers need to do more to comply with minimum regulatory standards and lift the overall quality of education and care.

Service providers say the cost and burden of regulation is too high and getting in the way of delivering affordable services for parents. Regulatory requirements are a key driver of cost, particularly those relating to adult-to-child ratios and teaching qualification requirements, as are funding conditions (for example, those which support pay parity for teachers).

A 2022 ERO report found that too many disabled children are excluded from ECE and, while many services provide safe and nurturing environments, we need to strengthen teaching practices. For more information, see: <https://evidence.ero.govt.nz/documents/a-great-start-education-for-disabled-children-in-early-childhood>.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide "12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory."

Primary education

- Please provide the age of enrolment and duration of primary education:

Section 33 of the Education and Training Act 2020 sets out the right to free enrolment and education at state schools from a domestic student's fifth birthday and until 1 January after they turn 19. Schooling is compulsory from age 6-16 (Section 35 of the Education and Training Act 2020). In the majority of schools, a child can start school on the day they turn 5 years old (they don't have to wait until the start of a new school year). However, some schools have a policy of starting children at school together as a group at the start of each term (cohort entry). Primary education year levels are from years 1-8.

- Is primary education compulsory and free of charge?

- ☒ Primary education is compulsory
☐ Primary education is **not** compulsory.
☒ Primary education is free of charge.
☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Part Three of the Education and Training Act 2020 sets out the legislation that pertains to primary and secondary education. This sets out the right to free enrolment and education (Section 33) if they meet the definition of a domestic student, as defined in Section 10 of the Education and Training Act 2020.

There are 3 types of payments.

State schools cannot charge for any costs associated with delivering the curriculum.

- **Donations:** These are voluntary payments that schools may seek from their students' parents, caregivers, and communities for either a general or specific purpose. If a school is eligible for and has opted into the school donations scheme, they cannot request donations from parents or caregivers (except towards overnight camps).
- **Purchases of goods and services:** These are for optional goods or services, such as lunches or stationery. Parents and caregivers may choose to purchase these from the school, or they can purchase this elsewhere. Should a parent or caregiver be unable to afford an item, such as a school uniform or stationery, in the first instance it is recommended that the parent or caregiver talk to the school as they might be able to get financial assistance.
- **Attendance dues:** These are compulsory for students attending state integrated schools as a condition of their enrolment. Attendance dues cover school property-related costs as these costs are managed separately by a school proprietor who must use these funds for meeting charges associated with the schools' premises.

For more information, see: <https://www.education.govt.nz/school/funding-and-financials/fees-charges-and-donations/>.

The Ministry of Education also provides school transport assistance to support parents and caregivers to overcome barriers to education and meet their responsibility to get their students to school. For more information, see: <https://www.education.govt.nz/school/property-and-transport/transport/>.

- What challenges were encountered in realizing primary education?

- | | |
|--|--|
| ☐ Limited access | ☒ Poor learning outcomes in: |
| ☒ Issues of equity and inclusion | Foundation literacy |
| ☐ High dropout rates | Numeracy |
| ☐ Poor quality programmes | Social and emotional learning |
| ☐ Other: | Others |
| | ☒ Disparity in learning outcomes |
| | ☐ Low number of professionally trained teachers |

- Please elaborate. Brief quantitative information may be added.

Challenges encountered in primary education include:

- Students not regularly attending school, and, in recent years, the level of absence each term – be it chronic or at any other level – has been higher than before the pandemic.
- Equity issues, such as inequity in learner outcomes, access to technology, and online learning.
- Students with additional needs not having the same access to school opportunities and resources as other students.
- Teacher workforce strategies lack the necessary support, coherence, and coordination, recruiting quality teachers.
- Challenges supporting meaningful celebration and recognition of cultures without sufficient resources and information.
- High levels of bullying and discrimination contributing to feelings of not being accepted.

- COVID-19 continues to place additional pressures on all areas of the education system, such as ongoing effects of learner and staff sickness.

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

Schooling is compulsory from age 6-16. Secondary education Year levels are from Years 9-13 (students typically aged between 13-18). There is no current distinction between lower or secondary education in New Zealand.

- Please provide the age of enrolment and duration of upper secondary education:

As above, secondary education year levels are from Years 9-13 and are typically aged between 13-18.

- Is lower and upper secondary education compulsory and free of charge?

- ☒ Lower secondary education is compulsory.
☐ Lower secondary education is **not** compulsory.
☒ Lower secondary education is free of charge.
☐ Lower secondary education is **not** free of charge.
☒ Upper secondary education is compulsory.
☐ Upper secondary education is **not** compulsory.
☒ Upper secondary education is free of charge
☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Please refer to answers provided previously above for **primary education**.

The National Certificate in Educational Achievement (NCEA) is the main qualification for secondary school students in New Zealand. NCEA qualifications are organised by the New Zealand Qualifications Authority (NZQA). There is no charge for domestic student entry for all NCEA standards and any Scholarship subject they may wish to sit.

Students can access technical and vocational training while at school. Vocational education is delivered in schools, or in partnership with secondary schools and tertiary providers, for example, through Trades Academies. Trades Academies funding supports trades and technology programmes for senior secondary school students to provide a transition between school and tertiary education. Trades Academies teach pre-trade courses to Year 11-13 students.

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☐ No ☒

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

There is no minimum age of entry into employment in New Zealand; however, there are age restrictions on where a young person can work and the type of work that employee can carry out. There are also restrictions on hours worked: if an employer employs any school-aged students, their work hours must be outside of school hours only and not between 10pm and 6am, including in times that interfere with the student doing schoolwork. It is unlawful for businesses to employ school-aged students during school hours under Section 54 of the Education and Training Act 2020, unless they have a certificate of exemption. There is no minimum wage for employees who are under 16 years of age.

- What challenges were encountered in realizing secondary education?

- | | |
|--|--|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☒ Issues of equity and inclusion | ☒ Low readiness of primary graduates |
| ☐ High dropout rates | ☐ Low number of professionally trained teachers |
| ☐ Poor quality programmes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

Refer to challenges provided in **primary education**.

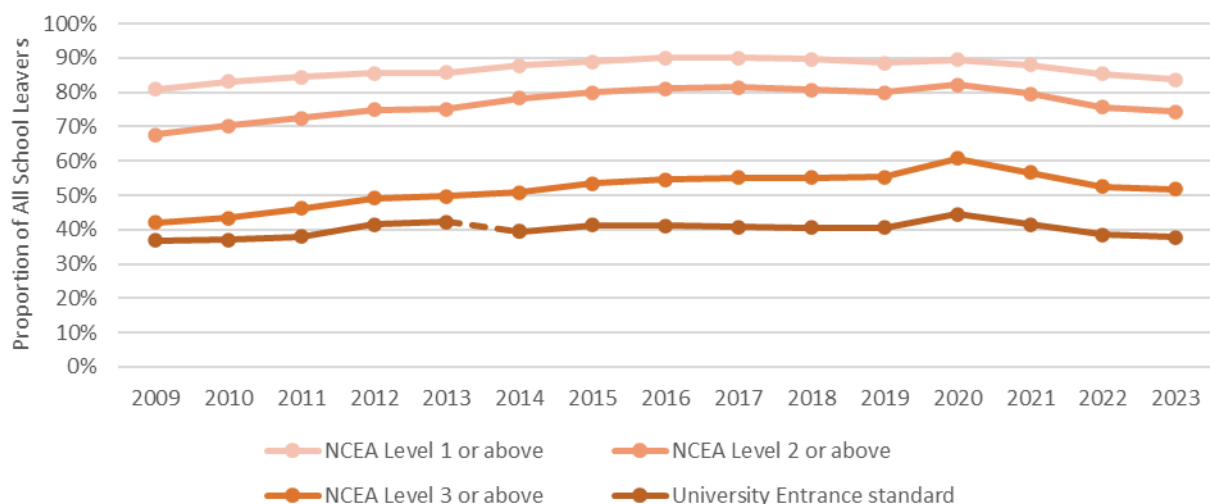
School Leavers attainment - Summary results for School Leavers 2023

School leavers' is the main measure of secondary student attainment. It focuses on a distinct point of time in every student's schooling life, namely when they finish school. While it is based on New Zealand National Certificate of Educational Achievement (NCEA) results the measure also captures attainment information on students using other assessments including, Cambridge International Assessment, and International Baccalaureate. There was an overall decrease in school leavers' attainment rates for all NCEA Levels and UE standard in 2023, compared to 2022 (Figure 1).

- NCEA Level 1 or above decreased 1.6 percentage points to 83.8%
- NCEA Level 2 or above decreased 1.3 percentage points to 74.4%
- NCEA Level 3 or above decreased 0.8 percentage points to 51.8%
- UE standard5 decreased 0.7 percentage points to 37.8%.

In 2023, attainment rates are also lower than they were in 2019 (the year prior to COVID-19), with the greatest decrease since 2019 being 5.6 percentage points observed for NCEA Level 2 or above.

Figure: School leavers' attainment, 2009 – 2023⁴⁴



The 2023 school leavers results aligned with the overall findings from the 2023 NCEA and UE statistics of attainment for each year level (as reported by New Zealand Qualifications Authority (NZQA)). NZQA reported declines in achievement of NCEA qualifications by Year 11 to 13 students from 2022 to 2023, with rates of attainment in 2023 also being lower than attainment by Year Level in 2019 for Year 11 and Year 12 learners. The drop in attainment by year level and the increased number of students leaving school before their 17th birthday has impacted the proportions of school leavers attaining qualifications at all levels of NCEA.

Student retention and attainment in 2020 school leaver data was slightly better than the years either side of it. This was influenced by the unusual circumstances in 2020 due to the COVID-19 pandemic, including learning from home, border closures, higher unemployment rates, and availability of Learning Recognition Credits (LRC) in 2020.

⁴⁴ Between 2013 and 2014 the requirements for University Entrance were changed, making it harder to attain. From 2014 learners needed to attain 14 credits in each of 3 UE subjects, and 18 additional credits from other standards at level 3 or higher, the earlier requirement was 14 credits in each of 2 UE subjects, and 14 additional credits from other standards at level 3 or higher.

In recognition of the classroom, learning, and assessment time lost due to COVID-19 disruptions, the Ministry and NZQA granted LRC to all NCEA candidates in 2020, 2021 and 2022. The LRC's were important both for allowing students to credential their learning and for retaining sector confidence and engagement. Where appropriate, we also amended the requirements for Course Endorsements, Certificate Endorsements, and University Entrance.

No LRC were awarded in 2023, but students who had LRC from 2020-2022 could continue to use them as part of the qualifications they completed after 2022, if they were at the appropriate level and needed to complete a qualification.

For more information, see: <https://www.educationcounts.govt.nz/statistics/school-leavers>.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁴⁵, and target 4.4⁴⁶. Article 4 of the Convention requires states to make "higher education equally accessible to all on the basis of individual capacity". Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by "every appropriate means, and in particular by the progressive introduction of free education". Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items may be ticked):

- ☐ Higher education is free of charge
- ☒ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ☒ Higher education is accessible through financial incentives and scholarships
- ☒ Higher education is accessible through positive or affirmative action measures
- ☒ Higher education is accessible through credit transfer system between states
- ☒ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).
- ☒ Other:

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

New Zealand's tertiary education system delivers to around 500,000 learners and approximately 15% of New Zealand employers.

The system is made up of:

- 8 universities⁴⁷
- 3 Wānanga (refer above)
- Te Pūkenga - New Zealand Institute of Skills and Technology^{*48}
- 396 registered and active Private Training Establishments (PTEs), 201 of which received TEC funding in 2022⁴⁹
- 6 Workforce Development Councils (WDCs)⁵⁰
- 113 other organisations (including other tertiary education providers, employers, and community education providers).

⁴⁵ Which calls on states to "ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university".

⁴⁶ Which recommends to "substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship".

⁴⁷ <https://www.universitiesnz.ac.nz/universities>

⁴⁸ <https://www.tepukenga.ac.nz/>

⁴⁹ <https://www.tec.govt.nz/vocational-education/vocational-education/delivering-vocational-education/private-training-establishments/>

⁵⁰ <https://www.tec.govt.nz/vocational-education/vocational-education/strengthening-vocational-education/workforce-development-councils-wdcs/>

The Minister of Education sets the direction for the tertiary education system. Funding and accountability are two key levers that can be used to help achieve their objectives.

New Zealand's tertiary education system is open entry and is funded in a way that is not restricted by learner age.

Government funds tertiary education organisations and providers via the TEC, and many tertiary education organisations also receive external funding through publicly funded research contracts. Government sets funding rules (e.g., funding rates, rules around fees free payments on behalf of learners and fee regulation) through Ministerial funding determinations issued under section 419 of the Education and Training Act 2020. This requires decisions by the Minister of Education to determine the design of funding mechanisms that the TEC then use to fund organisations. Funding Determinations specify the amount of money, or the proportion, available under any particular funding mechanism, any conditions that TEC must attach to funding, and provide for funding that targets particular groups of students. The largest fund, Qualifications Delivery, pays tuition subsidies to providers, based on the projected number of equivalent full-time student – called an EFTS.⁵¹

The Government contributes to the cost of further education for eligible students by providing tuition subsidies and targeted fee subsidies but most New Zealand tertiary education providers charge fees depending on the type of course being offered.

The Government has a subsidised Student Loan Scheme to help students pay for their tuition fees (and contribute to their course costs and living expenses if they are studying full-time). Student loans are interest-free and income-contingent for borrowers living in New Zealand.

Student allowance payments (which are grants) and living cost student loans are the main ways the government helps students to meet their living expenses. These entitlements are adjusted every year on 1 April to account for inflation.

In 2022, students paid around 24 percent of the full costs of study through tuition fees which makes the Government's share around 76 percent. In practice, the Government's share rises to 85 percent if the implicit subsidy relating to interest-free borrowing is taken into consideration. For more information, see: <https://parents.education.govt.nz/further-education/student-loans-and-allowances/>.

International students are not funded publicly, with some exceptions.⁵²

The Education and Training Act 2020 has provisions to establish and support a tertiary education and vocational education and training system, it:

- Provides the framework for the Government to set out its strategic direction for tertiary education
- Establishes tertiary education organisations, and their operation, duties, powers, compliance, and disestablishment
- Provides for the admission of domestic and international students and sets out student rights, responsibilities, and protections
- Supports the health, safety, and well-being of students
- Regulates learning and providing quality assurance for learning
- Provides for funding of tertiary education
- Provides for the roles and functions of other regulators and education agencies in tertiary education.

The Minister of Tertiary Education and Skills has indicated an immediate priority is to disestablish Te Pūkenga- New Zealand Institute of Skills and Technology to restore regional decision-making.

⁵¹ Work-based training is currently paid per Standard Training Measure while the legacy systems for vocational education and training remain in place as a long-term system is developed.

⁵² Domestic student status is defined by Gazette notice, notably including international PhD students, who are an important part of the research system.

Tertiary Education Strategy (TES)

The Tertiary Education Strategy as mandated under the Education and Training Act 2020, sets out the Government's long-term strategic direction for tertiary education. For more information, see: <https://www.legislation.govt.nz/act/public/2020/0038/latest/LMS202208.html>. The TES includes the economic, social, and environmental goals for tertiary education, along with the development aspirations for Māori and other population groups, and the current and medium-term priorities for tertiary education. The TES includes actions that both tertiary education organisations and Government can take to help achieve the priorities. See: <https://www.education.govt.nz/our-work/overall-strategies-and-policies/the-statement-of-national-education-and-learning-priorities-nelp-and-the-tertiary-education-strategy-tes/>.

Tertiary education organisations need to show how they will have regard to the TES priorities in their investment plans to the TEC. Tertiary education organisations are autonomous and, therefore, responsible for their own operational arrangements, including all financial, employment and other management practices. This includes the freedom of universities and wānanga to appoint their own staff, decide the subject matter they teach, and to teach and assess in a way that they consider best promotes learning.

National Careers System Strategy

The National Careers System Strategy was launched in 2023. The vision of the Strategy is to ensure that people are empowered to understand themselves and their aspirations and can navigate careers opportunities that fit throughout their lives. A key principle to the strategy is ensuring that the careers system is available to everyone throughout their lives, regardless of age, gender, ethnicity, or ability. This includes ensuring that Māori and Pacific people and other priority groups, including disabled people, youth at risk of limited employment, women, and those likely to be impacted by the changing world of work, can access careers support. This is critical to supporting equitable work and education outcomes. For more information, see: <https://www.tec.govt.nz/focus/our-focus/national-careers-system-strategy/>.

Supporting foundation level education – Delivery at Levels 1 and 2 on the NZQCF (DQ1-2) Fund

This funding provides essential foundation skills at a no cost to learners by funding tertiary education organisations that are best able to meet the needs of these learners.

Fees Free

As part of Budget 2024, the Government has announced that Fees Free for the first year of study or training will finish at the end of 2024, with a final-year Fees free scheme replacing it from 2025. Transition arrangements for first-year Fees Free learners, as well as detailed policy parameters and implementation design for the final-year Fees Free Scheme are currently being worked through. Once decisions are made, this information will be updated and communicated to the sector and learners. For more information, see: <https://www.feesfree.govt.nz/>.

Targeted Training and Apprenticeship Fund and the Apprenticeship Boost Initiative

In 2020, and as a response to COVID-19, the Government implemented the Targeted Training and Apprenticeship Fund and the Apprenticeship Boost Initiative to support more learners to train in vocational education and training. The Targeted Training and Apprenticeship Fund which ran from mid-2020 to the end of 2023, supported learners to train in targeted vocational areas without having to pay fees. Alongside work across the tertiary sector to help rebalance participation across tertiary education, apprenticeship support such as Apprenticeship Fund has helped to supported women's entry into traditionally male-dominated fields.

Apprenticeship Boost provides subsidies to employers of eligible apprentices to help keep them employed and training towards their qualification and to incentivise employers to take on new apprentices. This initiative provides funding for targeted industries from 1 January 2025 at \$500 a month per eligible apprentice and targeted to first-year apprentices only (where funding for second-year apprentices will finish on 31 December 2024). This initiative has supported more than 66,000 apprentices to stay in or take up an apprenticeship since the initiative was introduced in August 2020.

Māori and Pasifika Trades Training funding

Māori and Pasifika Trades Training (MPTT) funding provides fees-free tertiary places for Māori and Pasifika learners aged between 16 and 40 to achieve in pre-trades training and progress to sustainable trades or trades-related employment (including New Zealand Apprenticeships), other successful industry training programmes at Level 3 and above on the New Zealand Qualification Framework (NZQF), and managed apprenticeships. For more information, see: [https://www.tec.govt.nz/funding/funding-and-performance/funding/fund-finder/maori-and-pasifika-trades-training/#:~:text=M%C4%81ori%20and%20Pasifika%20Trades%20Training%20\(MPTT\)%20funding%20provides%20fees%2D,Apprenticeships\)%2C%20other%20successful%20industry%20training.](https://www.tec.govt.nz/funding/funding-and-performance/funding/fund-finder/maori-and-pasifika-trades-training/#:~:text=M%C4%81ori%20and%20Pasifika%20Trades%20Training%20(MPTT)%20funding%20provides%20fees%2D,Apprenticeships)%2C%20other%20successful%20industry%20training.)

Youth Guarantee Fund

Youth Guarantee funding provides fees-free tertiary study at Levels 1–3 to enable 16–24-year-olds to progress to higher-level education or employment.

- What challenges were encountered in realizing higher education?

- | | |
|--|--|
| ☐ Limited access | ☐ Low number of professionally trained professors |
| ☒ Issues of equity and inclusion | ☒ Insufficient mechanisms to ensure smooth transition from secondary to tertiary |
| ☐ Poor quality programmes | |
| ☐ Poor learning outcomes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

New Zealand is facing the challenge of managing affordability and access for students, while maintaining the quality and viability of tertiary education organisations.

Some groups of students are statistically less likely to succeed in tertiary education, namely Māori, Pacific, disabled, people from lower socio-economic backgrounds, and people who are the first in their family to attend tertiary education. These priority groups are disproportionately affected by external barriers to higher education pathways, including: cost of living and tertiary study; systemic biases, for example streaming in schools; capacity (time and space) to engage; lack of connections to people already on desired pathways; and COVID-19 impacts. For more information, see: <https://www.tec.govt.nz/assets/Publications-and-others/Transitions-from-Secondary-School.pdf>.

New research on disabled students' experiences in tertiary education shows that accessing learning spaces and support can be difficult and the levels of this support can be inconsistent. It also found that barriers to inclusion, such as ableism, inaccessible events, and lack of trainings on disability, are common and power dynamics between disabled students, teaching staff, and providers can make advocacy unsafe, unsupportive, or ineffective. For more information, see: <https://www.education.govt.nz/news/disabled-students-face-difficulties-accessing-support-in-tertiary-education/>.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4 of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of professional training including reskilling and upskilling programmes
- ☒ Recognition, validation and certification of non-formal and informal learning

- ☒ Provision of free of charge career guidance and counselling
- ☒ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☒ Other:

- Please elaborate further on the measures taken:

Adult Community Education (ACE)
ACE includes community-based education, foundation skills, and pathways into other learning opportunities that meet community learning needs. The three priorities of ACE funding are to: target learners whose initial learning was not successful; raise foundational skills; and strengthen social cohesion, enhancing a learner's ability to participate in society and economic life.

Trade Academies funding
This funding supports trades and technology programmes for senior secondary school learners to provide a transition between school and tertiary education.

Gateway funding
This funding enables secondary schools to give senior learners access to structured workplace learning integrated with school-based learning.

Micro-credentials
Micro-credentials are small, stand-alone awards with set learning outcomes. They are part of New Zealand's education and training system. Micro-credentials recognise learner's skills, experience, or knowledge, while meeting demand from employers, industry, and communities. Although they are stand-alone awards, some micro-credentials may also form part of a programme that leads to a qualification.

- What challenges were encountered in realizing adult learning and education?

- | | |
|--|---|
| ☐ Limited access | ☐ Limited funding |
| ☒ Issues of equity and inclusion | ☐ Poor learning outcomes |
| ☐ Poor quality programmes | ☐ Low number of professionally trained educators |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

Common challenges identified by learners included managing academic requirements, other commitments such as work and family, financial barriers, and a lack of resources (such as transportation). Some barriers are endemic, related to geographic, socio-economic, and logistics factors.

Challenges for providers include meeting the diverse needs of learners and resourcing.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to "build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all".

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ☒ State monitoring and inspections
- ☒ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☒ Infrastructure
- ☒ Curriculum
- ☒ Student-teacher ratio
- ☒ School fees (if relevant)

- Please elaborate on each of the measures taken:

In New Zealand, the Government sets minimum education standards for early childhood services and schools so that all children can gain access to education of good quality.

Early Childhood Education

The Education and Training Act 2020 has provisions regarding the regulation of ECE it provides:

- The licensing and certification of early childhood services
- The administration of licensed early childhood services
- Several offence provisions.

The purpose is to regulate an early childhood education system where all children are able to participate and receive a strong foundation for learning, positive well-being, and life outcomes by:

- Setting standards to support quality provision and learning
- Supporting the health, safety, and well-being of children
- Enabling parental choice by providing for licensing and funding of different types of provision.

Primary and Secondary education

The Education and Training Act 2020 has provisions regarding the regulation of primary and secondary education, it provides:

- Priorities, rights, and responsibilities
- Restrictions on the right to enrol and attend school
- Teaching, learning, and well-being
- Searches and the surrender of property
- The administration of State schools
- The establishment and designation of State schools
- Private schools
- Secondary–tertiary programmes
- Resolving serious disputes
- Various miscellaneous provisions
- Several offence provisions.

Tertiary education and vocational education and training

When making decisions, the Minister of Education, the TEC and the NZQA must take into account a set of objectives in the Education and Training Act (part 4, section 252) for fostering and developing a tertiary education and vocational education and training system.

As a partner to Te Tiriti/the Treaty, the Crown has a duty to actively promote and protect Te Tiriti/the Treaty rights and to develop education settings in a way that reflects Māori-Crown relationships. This is provided for as part of the purpose of the Education and Training Act 2020, section 4⁵³.

The Education and Training Act 2020 has provisions regarding the regulation of tertiary education and vocational education and training. It refers to/includes:

- Various preliminary matters
- Teaching, learning, and well-being
- The administration of tertiary institutions
- Te Pūkenga—New Zealand Institute of Skills and Technology
- Private training establishments
- Work-based training
- Several offence provisions.

The purpose is to establish and support a tertiary education and vocational education and training system that meets the objectives by:

- Providing the framework for the Government to set out its strategic direction for tertiary education

⁵³ Section 9 in the Education and Training Act 2020 sets out the key Te Tiriti o Waitangi-related provisions in the Act that recognise and respect the Crown's responsibility to give effect to Te Tiriti/the Treaty.

- Establishing tertiary education organisations, and providing for their operation, duties, powers, compliance, and disestablishment
- Providing for the admission of domestic and international students and setting out student rights, responsibilities, and protections
- Supporting the health, safety, and well-being of students
- Regulating learning and providing quality assurance for learning, including qualifications, credentials, micro-credentials, programmes, assessment and skill standards, national curricula, and apprenticeship training arrangements
- Providing for funding of tertiary education
- Providing for the roles and functions of other regulators and education agencies.

ERO is a government department, independent from the Ministry of Education, which is tasked with evaluating and reporting publicly on the education and care of students in schools and early childhood services. ERO findings inform decisions and choices made by parents, teachers, managers and trustees at the individual school and early childhood level, and the national level by Government policy makers.

The Teaching Council is the professional body which sets the standards of quality for the teaching profession. As an independent statutory body, it is responsible for the registration and ongoing certification of teachers in New Zealand, supporting the processes needed to ensure teachers are competent, and administering the process for managing complaints about teachers. The Council sets a Code of Professional Responsibility and Standards for the Teaching Profession, and teachers must meet these standards in order to renew their certification. The Teaching Council deals with concerns about a teacher's competence or conduct through its disciplinary functions, including the quasi-judicial Complaints Assessment Committee and Disciplinary Tribunal. The Teaching Council also reviews and approves initial teacher education programmes, which lead to registration as a teacher.

NZQA has a role in ensuring that New Zealand qualifications are accepted as credible and robust, nationally and internationally. NZQA is responsible for managing the NZQF, administering the secondary school assessment system, and provides independent quality assurance of non-university tertiary education providers. Universities New Zealand is responsible for quality assurance of the university sector.

NZQA holds responsibility for administering the Tertiary and International Learners Code of Practice which specifies the role of providers in ensuring the wellbeing and safety of learners. NZQA provide advice and guidance on the code and monitor providers' compliance with the code to ensure they are meeting their obligations to learners. They also investigate complaints about Code breaches and take appropriate action to address proven breaches by providers. For more information, see:

<https://www2.nzqa.govt.nz/tertiary/the-code/>.

The Health and Safety at Work Act 2015 is New Zealand's workplace health and safety law. It came into effect on 4 April 2016 and sets out the principles, duties and rights in relation to workplace health and safety. It is essential that leaders of schools and early learning services have a comprehensive understanding of their health and safety responsibilities and good practice. The Ministry of Education provides guidance on the different roles and responsibilities involved in health and safety. It includes the responsibilities of leaders and other duty holders, understanding what a person conducting a business or undertaking (PCBU) is and contractor responsibilities. For more information, see:

<https://www.education.govt.nz/school/health-safety-and-wellbeing/>.

For the state schooling system, teacher-to-student ratios are set by government to determine staffing entitlements at a whole school level. Schools may then choose how they use the staff allocated to their school and therefore the ratios in each classroom.

- What challenges were encountered in realizing quality education?

- | | |
|---|---|
| ☐ Non-supportive or inadequate learning environments | ☐ Low quality educational infrastructure and materials |
| ☐ Violence in schools | ☐ Inadequate parental support to education |
| ☒ Cost of education | ☒ Long distances to schools |
| ☐ Conflicts or crises | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

Curriculum

A high-quality curriculum is essential for driving social mobility and building a future-ready workforce. New Zealand students are not being set up consistently with the knowledge they need to achieve throughout their schooling, and there is variation in what students are taught across schools. The New Zealand Curriculum is currently being refreshed. Building on the strengths of our current curriculum, work is underway to establish a knowledge-rich curriculum grounded in the science of learning that is clear about what to teach, and by when, each year of schooling. This will reduce the workload for teachers and enable them to focus on delivering relevant and exciting teaching and learning programmes to their students that bring the curriculum to life through local, national, and global contexts.

In addition to a refreshed, knowledge-rich curriculum, the Government's key priorities include establishing:

- **Better approach to literacy and numeracy:** Implementing evidence-based instruction in early literacy and mathematics.
- **Smarter assessment and reporting:** Implementing consistent models of monitoring student progress and achievement
- **Improved teacher training:** Developing the workforce of the future, including leadership development pathways
- **Stronger learning support:** Targeting effective learning support interventions for students with additional needs.
- **Greater use of data:** Using data and evidence to drive consistent improvement in achievement.

This is intended to support an education system where all students are getting a quality education no matter where they live, and gain skills and qualifications, that will support them into further study and employment.

Quality teaching and learning

Our aim is to ensure that teachers are well-prepared when they enter the classroom with the knowledge and skills they need to succeed. The Ministry of Education are looking at small-scale changes within current system settings as well as possible more significant reform options to the regulatory and funding environment.

Declining achievement in the core subjects of maths, reading and writing means that too many students are leaving school without the knowledge and skills that everyone needs to succeed. The Government has introduced changes to ensure that primary and intermediate students are now being taught an average of one hour a day of each of reading, writing and maths, and the distraction of cell phones is being removed from classrooms.

Quality Environment

It's important that the physical design of school spaces responds and aligns to the way teaching and learning takes place at each school, which is why schools have a say in school property decisions. The Government wants all New Zealand schools to provide quality learning environments by 2030. This quality learning environments target is about the physical elements of the learning environment and how well the property is aligned to the needs of teaching and learning at each school. Ministry of Education is developing a quality learning environments model with the aim of collecting the right data about school property to ensure property decisions support the best possible learning outcomes and wellbeing of everyone on a school site.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to "substantially increase the supply of qualified teachers".

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ☒ ☐ Teacher training is provided without discrimination.
- ☒ ☐ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- ☒ Initial training and continuous professional development are provided.
- ☒ Minimum standards and qualifications required for the teaching profession.
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession.

- ☒ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- ☒ Establishment of performance monitoring systems.
- ☒ Measures taken to increase women in leadership positions in education.

o Other:

- Please elaborate on each of the measures taken:

The legal framework for teacher education does not permit discrimination in eligibility for entry into the teaching profession (other than prohibitions on allowing people with criminal convictions to train as teachers).

Criteria for entry to teacher training programmes relate to academic qualifications and dispositional qualities. These criteria vary across Initial Teacher Education (ITE) providers and between individual programmes. These are set by the tertiary education institutions that offer teacher education programmes. Teacher education programmes need to meet the standards set by the Teaching Council and by national quality assurance bodies. The Teaching Council is currently consulting on proposals to lift entry requirements into ITE, specifically requiring 14 credits at NCEA Level 2.⁵⁴ Recent research by the Education Review Office identified that not all teachers are confident about teaching maths.⁵⁵

Teachers are required to be registered and certificated by the Teaching Council. Teacher registration is a system for ensuring that there is a minimum quality standard applied to all teachers entering the general education system in New Zealand. Maintenance of a register assists boards of trustees and other employing bodies in making appointments and reassures parents and the public that a national minimum standard for teaching profession is available.

In order to maintain this quality standard and ensure that all teachers are continually improving their knowledge and practice, Professional Learning and Development (PLD) is funded. The focus of PLD reflects current teacher and student needs. A recent Curriculum Insights and Progress Study (CIPS) shows that 22% of Year 8 students in New Zealand are at or above the appropriate curriculum level for mathematics and for Māori students this number was 12%. In response, the maths curriculum for year 0-8 will be implemented from 2025, and professional learning will focus on what maths content is to be taught each year and best practice pedagogy of how it is to be taught as specified in the curriculum. The professional learning will include how to make effective use of quality maths guides and associated products for teachers and students. There are approximately 42,000 teachers who will need this professional learning over the next two years. This will ensure that teachers know and understand the curriculum content and how to teach it at the correct year levels, and also address gaps in teacher knowledge and confidence.

It is a requirement for teacher registration that a person has completed an approved ITE programme. Government subsidises the cost of tuition in tertiary education but students pay some fees; in addition, the Government provides scholarships for people doing ITE programmes, targeted at population groups who are less well represented in the teaching workforce, and also people training to teach subjects that are in shortage.

Safety in schools and early learning

Under the Children's Act 2014, all schools and kura must have a written child protection policy. This describes the procedures that schools will follow to ensure children are safe and incidents of suspected and potential abuse and neglect are appropriately responded to. These policies must be reviewed every three years, and compliance is monitored by the Education Review Office.

In 2023, the Education and Training Amendment Act 2023 clarified police vetting of non-teaching employees and contractors in early learning and schools by requiring employers to consider a police vet and assess any risk to children's safety before an employee begins work or, in the case of a contractor, before they have unsupervised access to children. When carrying out risk assessments based on police vets, early learning services will need to take into account guidelines provided by the Ministry of Education.

Salaries in Schools and Kindergartens

Salaries and other terms and conditions for teachers, in state and state-integrated schools and in kindergartens, are determined through collective bargaining. The negotiations take place no less than every

⁵⁴ [Entry requirements for Initial Teacher Education \(ITE\) programmes :: Teaching Council of Aotearoa New Zealand](#)

⁵⁵ [Making it Count: Teaching Maths in Years 1 to 3 \(ero.govt.nz\)](#)

three years between education unions and the Secretary for Education, under delegation from the Public Service Commissioner. The cyclical nature of collective bargaining ensures that salaries are adjusted according to cultural and environmental factors on a regular basis. All trained teachers in state and state-integrated schools and in kindergartens are paid on the Unified Base Salary Scale which provides parity for base remuneration across these settings, according to their qualifications and teaching experience. Entry salary is assessed by the Ministry of Education taking into account academic qualifications, any teaching experience and other relevant work experience.

In addition to their base salary, teachers earn additional salary units and allowances. Schools allocate units to teachers for additional responsibilities such as management roles, curriculum development, or pastoral care.

Schools can also make extra payments for recruitment, retention, or special responsibilities from their own funding, which includes ministry-provided cash and other school-raised funds. This flexibility allows schools to recognise and reward specific skills and responsibilities.

There are also specific allowances provided for teachers who wish to follow a non-management pathway such as a specialist teacher. Other roles and allowances exist for teachers who have responsibility for:

- Cultural leadership
- Working across a cluster of schools or within a school to lift student achievement by strengthening teacher practice
- Working with teachers to support their practice working with students with behavioural and other needs
- Pastoral care
- Community Liaison
- Mentoring beginning teachers
- Instructing students in te reo Māori, a Pacific language, sign or braille

Pay Equity

Since 2019, the Ministry of Education has reached final settlement on pay equity claims for six non-teaching occupational groups within the education workforce. These claims were raised under the provisions of the Equal Pay Act which prohibits sex-based pay discrimination. Five other claims for education workforces raised by unions since 2020 are still under investigation. The largest of these is for teachers, which covers teachers in early intervention, early childhood, kindergarten, kura, primary, area, composite, intermediate and secondary state and state-integrated schools. The work assessment phase of the Teacher's Pay Equity Claim is well underway. This phase allows parties to the claim to understand if there is sex-based undervaluation in pay and conditions of the claimant workforce, by undertaking a gender-neutral assessment of the work of affected employees against the work of comparable male-dominated workforces.

Minimum standards and qualifications are required for the teaching profession

The Teaching Council is the professional body which sets the standards of quality for the teaching profession. As an independent statutory body, it is responsible for the registration and ongoing certification of teachers in New Zealand, supporting the processes needed to ensure teachers are competent, and administering the process for managing complaints about teachers.

To teach in a state or state integrated school in New Zealand, all teachers must be registered with the Teaching Council and hold a practicing certificate. To be registered means a teacher has a Teaching Council approved ITE qualification and is competent and fit for teaching.

There are also teacher qualification requirements in ECE in New Zealand. In order to meet licensing requirements, 50% of required staff in teacher-led ECE services must hold an early childhood education teaching qualification that is recognised by the Teaching Council for registration purposes. To act as the person responsible in a licensed teacher-led ECE centre (the key supervisory position in our system) a teacher must hold either a recognised early childhood education or primary teaching qualification, and a current practising certificate.

There are three main practicing certificate types depending on where teachers are in their teaching career: Provisional Practicing Certificate, Full Practicing Certificate (Category One), and Full Practicing Certificate (Category Two).

Graduates of ITE can apply for a Provisional Practising Certificate, which demonstrates they can meet the Council's Teacher Standards with support. In the first two years, those holding a Provisional Practising Certificate must undergo a two-year programme of induction and mentoring provided by their employer to support their development in becoming effective teachers, before they can move to full Certification. Teachers who hold a Full Practising Certificate must prove they can meet the standards independently and have to renew their Certificate every three years to ensure high quality teaching is maintained throughout their career. Category Two is for experienced teachers who, because of their role type, are not currently able to be endorsed as meeting all of the Council's Standards.

There is also a Returning to Teaching in Aotearoa New Zealand Practising Certificate, which is for experienced registered teacher who have not completed any teaching the five years prior to their application to renew their Practising Certificate.

These certificates help to maintain minimum standards for the teaching profession.

Measures taken to strengthen the social status and attractiveness of the teaching profession

The Government has actioned the following to strengthen the attractiveness of the teaching profession:

- Supports were put in place to increase the status of the teaching profession and to make teaching qualifications more accessible.
- The Government, through TeachNZ, offers scholarships to support people to enter and complete teacher training, with scholarship criteria weighted to address areas experiencing teacher supply pressure.
- There are also a number of initiatives in place which aim to support existing teachers by allowing time and funding for continued learning.

To raise achievement and develop a world leading education system, from 1 July 2024, the Government is investing nearly \$53 million over four years to attract, train, and retain the teacher workforce.

The funding will be used to:

- Offer 1200 School Onsite Training Programme (SOTP) places for aspiring teachers to train in the classroom. Funding is for four years and expands the programme to include primary and intermediate as well as secondary.
- Provide a \$20,000 package per placement to make it easier for SOTP teachers to train by providing a stipend toward their living and training expenses and a tuition fees contribution. Schools will also receive a costs contribution for each trainee teacher they work with.
- Support 300 teachers to relocate to New Zealand by extending the funding for Overseas Relocation Grants.
- Fund 425 Overseas Finders Fees packages for schools to assist with the costs of recruiting overseas teachers.
- Fund 130 places per year in the BeTTER Jobs Programme that matches beginning and returning teachers to selected schools facing recruitment or retention challenges.
- Fund 670 Study Awards and support grants for current teachers offered each year to reflect current teacher salary rates for professional learning and development.

For more information, see: <https://www.beehive.govt.nz/release/major-investment-teacher-supply-through-budget-24>.

Kāhui Ako

The Government continues to fund access to professional learning and development for teachers via centrally managed funding and funding included in schools' operational grant, via a range of scholarships, study awards and sabbaticals provided for in the employment Collective Agreement. The Kāhui Ako initiative provides additional resources to schools to employ teachers and principals specifically to collaborate within and across schools. The initiative was introduced to provide a deliberate, system-wide approach to ensuring teachers can work together effectively to solve problems of professional practice, with a view ultimately to enhancing learner outcomes. It provides a mechanism for collaboration of teachers and school leaders within and across schools, across the learner pathway through early childhood education, the schooling system, and higher education, and around shared achievement challenges specific to each Kāhui Ako's group of learners.

Performance monitoring systems

The Teaching Council sets out expectations for teacher registration and certification based on evaluation against the standards set by the Teaching Council. There are three main practising certificate types depending on where teachers are in their teaching career.

Performance monitoring is provided through the Professional Growth Cycle (PGC) - a learning-focused process that has replaced performance appraisal for determining whether principals, teachers, and early childhood education (ECE) professional leaders meet the Standards for the Teaching Profession | Ngā Paerewa mō te Umanga Whakaakoranga. The PGC framework takes into account the distinctive contexts of various learning environments, facilitating meaningful growth for principals, and ECE professional leaders.

- What challenges were encountered in the education personnel?

- | | |
|---|---|
| ☒ Shortages of teaching staff | ☐ Low quality educational infrastructure and materials |
| ☒ Lack of qualified, trained and motivated teaching staff | ☒ High student – teacher ratio |
| ☐ Lack of training centres | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

Teacher workforce

There are ongoing shortages of qualified teachers at the secondary school level, and these are projected to continue for some years. Anecdotally, the shortages are particularly pronounced in STEM subjects and in te reo Māori. In English-medium secondary education, the shortage is set to increase from 227 in 2024 to 679 by 2026. English-medium Primary education has sufficient teacher supply for now at a nationwide level, with a projected supply of 593 to 1,217 teachers from 2024 to 2026. For more information, see: <https://www.educationcounts.govt.nz/publications/series/a-summary-of-the-teacher-demand-and-supply-planning-tool>.

There are also challenges in the consistency of teaching quality, with recognised issues including lack of cultural responsiveness, bias and lack of inclusion of students with disability and/or learning support needs. These issues continue to be the focus of funding for professional learning development for teachers.

New Zealand has an extensive work programme underway to strengthen the education system, from early childhood education through to tertiary and beyond, including work to overcome challenges. This includes a priority to focus on developing the workforce need for the future.

The Council sets a Code of Professional Responsibility and Standards for the Teaching Profession, and teachers must meet these standards in order to renew their certification. The Teaching Council deals with concerns about a teacher's competence or conduct through its disciplinary functions, including the quasi-judicial Complaints Assessment Committee and Disciplinary Tribunal. The Teaching Council also reviews and approves initial teacher education programmes, which lead to registration as a teacher

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁵⁶ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

- ☒ Curriculum includes human rights education.
- ☒ Educational and/or extracurricular activities are organized on human rights education.
- ☐ Other:

- Please elaborate on each of the measures taken:

⁵⁶ Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture's contribution to sustainable development”.

Refer to 1.1 for more information.

The New Zealand Curriculum sets out principles that should underpin all school decision-making in New Zealand schools. These principles put students at the centre of their learning and include concepts about cultural diversity, inclusion, community engagement, and the Te Tiriti/ the Treaty. Through this, human rights education can be taught across the curriculum, and can be found in social studies from the early curriculum levels.

Te Marautanga o Aotearoa, the national curriculum for schools that deliver learning programmes from year 0 to year 13+ through the Māori language, aspires to develop successful learners who will grow as competent and confident learners, effective communicators in te ao Māori (Māori world), secure in their identity and sense of belonging.

Te Marautanga o Aotearoa recognises that every ākonga deserves to be supported to reach their full potential and have the opportunity for gaining the essential knowledge, skills, and developing dispositions to succeed in te ao Māori and the wider world. The curriculum also provides the opportunities for learners to speak, hear, and learn in the Māori language, to access mātauranga Māori (Māori language, customs, and knowledge) and tikanga Māori (knowledge and practices) that have been passed down through generations as a birth right.

Te Marautanga o Aotearoa incorporates a vision and principles for the revitalisation of te reo Māori and advances educational excellence for every ākonga in settings, learning through te reo Māori.

All learners should have the opportunity to acquire knowledge in all learning areas and to develop key competencies. Through this approach, they will be able to reach their full potential, and to participate effectively and positively in the Māori community and the global world.

The school-based curriculum provides for learning programmes which affirm and revitalise Māori language and culture. The primary aim is that the learner will be confident in the Māori world. Second, the school-based curriculum will provide experiences that enable the learner to participate in the wider society.

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁵⁷.

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☒ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁵⁸ explicitly apply to non-state educational institutions. Please specify:

The Education and Training Act 2020 says that schools must give effect to relevant student rights in the Human Rights Act 1993 and the New Zealand Bill of Rights 1990. New Zealand has legal frameworks for the provision of early childhood education, compulsory schooling (primary and secondary schools) and further education including technical, vocational, and higher academic education.

ECE

ECE is not compulsory. All ECE services are independent of government and are either private businesses, or community-based, not-for-profit organisations. There are six broad service types, each with different requirements and funding rates: education and care services, kindergartens, home-based education and care, hospital-based services (for children receiving treatment in hospitals), kōhanga reo, playcentres and playgroups. Centre-based ECE services may have different operating structures, philosophies, and affiliations, and are known by many different names, e.g., Montessori, kindergartens, crèches, preschools, a'oga amata (predominantly for Samoan children), and Rudolf Steiner. All services are licensed under the Education (Early Childhood Services) Regulations 2008, with the exception of playgroups, which are certificated under the Education (Playgroups) Regulations 2008. These regulations prescribe minimum standards that each service must meet. Licensing criteria are used to assess how the centres meet the minimum standards required by the regulations.

⁵⁷ Private, faith-based, NGOs, community actors.

⁵⁸ See: Article/Paragraph 1(1).

Private schools

Private schools are governed by their own independent boards and must be registered with the Ministry of Education under section 214 of the Education and Training Act 2020. Schedule 7 of the Education and Training Act 2020 sets out the legislative requirements for private schools.

Private schools have considerable freedom in the curriculum they offer, how it is delivered, and their school operating hours. However, they must have regard to any statement of national education and learning priorities (statutory documents issued under the Education and Training Act 2020 that set out the government's priorities for education).

Private schools may charge for school fees and other associated costs, and they also receive a private school subsidy from the government which is determined by a formula. Private schools can be primary, intermediate or secondary.

Homeschooling

Homeschooling is when parents educate their children themselves, instead of enrolling them in a school. Parents who want to educate their children at home need to apply to the Ministry of Education for a Certificate of Exemption from enrolment at a registered school. The Ministry of Education must be satisfied that the child will be taught at least as regularly and as well as they would be in a registered school.

New Zealand's further education providers are largely publicly funded. However, private training establishments (PTEs) may be established and registered under the Education and Training Act 2020. PTEs are operated by a wide range of companies, trusts and other entities, and offer post-school education or vocational training. These are diverse in terms of their scale of operation, location, ethnicity, culture and areas of educational expertise.

All private educational institutions, including private schools and PTEs, are subject to the Human Rights Act 1993. With some limited exceptions, private educational institutions are not permitted to discriminate against students on the grounds of sex, marital status, religious belief, colour, race or ethnic origins, disability age, political opinion, employment or family status or sexual orientation, where such a breach would result in:

- The refusal or failure to admit a person as a pupil or student; or
- The admittance of a person as a pupil or a student on less favourable terms and conditions than would otherwise be made available; or
- The denial or restricted access to any benefits or services provided by the establishment; or
- The exclusion of a person as a pupil or a student or subject him or her to any other detriment.

The exceptions are that educational establishments providing services for students of one sex, race, or religious belief, a particular disability, or age group, are not breaching the Act if they refuse to admit students of a different sex, race, or religious belief, disability or age. It is also not unlawful for an educational establishment to deny access to services to a person whose disability is such that they require special services or facilities that cannot reasonably be made available or where the disability risks harm to themselves or others (unless the establishment could take reasonable measures to reduce the risk to normal).

☐ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). [Please specify:](#)

☒ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. [Please specify:](#)

Religion in State schools

Section 97 of the Education and Training Act 2020 stipulates that the "teaching in every State primary school must, while the school is open, be entirely of a secular character". However, religious instruction and observances at State schools may be held in accordance with the right to free enrolment and free education at State schools.

Schools remain subject to the Education and Training Act 2020, the New Zealand Bill of Rights Act 1990 and Human Rights Act 1993, which include sections specifically on freedom of, and freedom from religion and the right not to be discriminated against on the grounds of religious belief or the lack of it.

Boards of trustees are accorded considerable discretion about what they choose to do by way of allowing provision of religious instruction. Regardless of the religious affiliations of board members, if a decision is made to allow religious instruction at the school, it must be provided in a non-discriminatory way and students' parents must have the ability to opt them out of such instruction if they wish.

The Education and Training Act 2020 specifies that religious instruction must be held on an opt-in basis by requiring signed consent from a parent or caregiver before allowing a student to participate in religious instruction.

☒ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

- ☒ Registration
- ☒ State monitoring and inspections
- ☐ Qualifications of teachers
- ☒ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☐ Infrastructure
- ☐ Curriculum
- ☐ Student-teacher ratio
- ☐ School fees
- ☐ School closures
- ☐ Other

- [Please elaborate:](#)

New Zealand has legal frameworks for the provision of early childhood education, compulsory schooling (primary and secondary schools) and further education including technical, vocational, and higher academic education.

As outlined previously, all early childhood education and care services are independent of Government. The minimum standards for services are set out in the Education (Early Childhood Services) Regulations 2008 and the Education (Playgroups) Regulations 2008. These cover health and safety, premises and facilities, curriculum, governance and management, staff qualifications, and adult-to-child ratios. In relation to health and safety, premises and facilities, curriculum, and governance and management, licensing criteria and certification criteria are used to assess how licensed services and certificated playgroups respectively are meeting the minimum standards set out in regulations.

Legislative requirements are different for private schools than for state and state integrated schools. Private schools are governed by their own independent boards. Private schools are registered with the Ministry of Education under section 214 of the Education and Training Act 2020. Schedule 7 of the Act sets out the legislative requirements for private schools.

- **Property:** The Ministry of Education does not own private school property. The school manager is responsible for all property maintenance and modifications. The school must comply with all building legislation like the Building Act 2004 and the Health and Safety at Work Act 2015.
- **Finances:** Private schools can charge for school fees and other associated costs. They have a contract between the people paying for the child's tuition (generally the parents) and the school's managing body. They also receive a subsidy from the government which is based on a formula.
- **Curriculum:** Private schools have considerable freedom in the curriculum they offer, how it is delivered, and their school operating hours. However, they must have regard to any statement of national education and learning priorities (the statutory documents issued under the Education and Training Act 2020 that set out the government's priorities for education).

ERO reviews of Private school reviews are different from reviews of state or state-integrated schools

ERO reviews private schools and reports to the Secretary for Education on whether the school meets the criteria for registration (as per Schedule 7 of the Education and Training Act 2020). For more information, see: <https://ero.govt.nz/how-ero-reviews/schoolskura-english-medium/private-and-independent-schools>.

- What challenges were encountered in non-state education provision?

- | | |
|---|---|
| ☐ Low quality educational infrastructure and materials | ☒ Issues in terms of equity and inclusion |
| ☐ Low number of professionally trained teachers | ☐ Weak government regulatory and monitoring capacity |
| ☐ High student – teacher ratio | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

While private schools receive a subsidy from the government, they may charge for school fees and other associated costs. These fees can act as a barrier for students who may not be able to attend the school.

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁵⁹.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

- ☒ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

Section 196 of the Education and Training Act 2020 provides that a distance school may deliver education through any medium, including digital technology.

- ☒ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)
- ☐ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.
- ☒ Measures to remove barriers to accessing digital content⁶⁰, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.
- ☒ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.
- ☒ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education.
- ☒ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.
- ☒ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

In New Zealand, governance of the education system is hierarchically devolved with areas of responsibility at various levels between the Minister, the Secretary of Education, education providers, schools and kura have autonomy over how they meet curriculum expectations, and for assessment, and resource allocation.

Responsibilities for providing digital technologies in education follow the devolved approach, with part of the digital education infrastructure provided centrally and other parts acquired locally. While provision of digital infrastructure to schools is partly devolved, the overarching rules that govern the access to and use of data and digital technologies in education, including data protection and privacy, are enacted by the central government and apply to all educational levels. The Education and Training Act 2020 contains

⁵⁹ Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

⁶⁰ Lack of internet connection, basic infrastructure or devices.

some provisions that are directly relevant to how schools should manage certain incidents involving digital technology.

Central government publicly provides, funds or partly funds digital infrastructure for system and institutional management at all levels of education for state and state-integrated schools. This includes internet connectivity, cyber protection, laptops for teachers and a limited form of student information system that tracks compulsory sector enrolment, exam administration systems, and some administrative and facility management systems. Independent private schools fall outside the remit of the government's digital strategy and their provision and funding of digital infrastructure. While they are part-financed by the state, they must acquire their digital hardware infrastructure (Internet and devices) with their own budget and in some cases may not be able to access publicly procured software made available to public state schools by the Ministry of Education.

The Ministry of Education funds Te Aho o Te Kura Pounamu, a distance education provider that offers a wide range of learning programmes for students (early childhood through to secondary education) and follows the national curriculum. For more information, see: <https://www.tekura.school.nz/>.

New Zealand has invested in supporting access to technologies in educational institutions, particularly ensuring home connectivity, and providing or leasing digital devices to schools. During the COVID-19 pandemic, New Zealand scaled up efforts in Equitable Digital Access programmes.

Connected Ako: Digital and Data for Learning

In June 2023, *Connected Ako: Digital and Data for Learning* – a strategy for education agencies was released as a major refresh of New Zealand's digital education strategy, taking into account lessons learned in the COVID-19 pandemic and advances in education technology and data analytics. Connected Ako, Digital and Data for Learning, is a 10-year strategy (2023-2033) to guide the digital and data approaches of New Zealand government education agencies. The principles will help shape ongoing budget and resource decision-making by education agencies. A light-touch monitoring mechanism is being put in place through a board which has representation from the Ministry of Education, NZQA, and TEC. For more information, see: <https://www.education.govt.nz/digitalstrategy/>.

Digital Strategy for Aotearoa and Action Plan

More broadly, New Zealand has a national digitalisation strategy, the "Digital Strategy for Aotearoa and Action Plan", to modernise and transform public services. Please note that digitalisation of the education system does not explicitly feature in the strategy. The Government has also created Chief Digital Officer, Chief Data Steward and Chief Information Security Officer roles to support a whole-of-government approach. For more information, see: <https://www.digital.govt.nz/digital-government/strategy/digital-strategy-for-aotearoa-and-action-plan/>.

Digital Identity for learning and assessment, Education Data Framework

For Digital Identity for Online learning, see: <http://www.education.govt.nz/school/digital-technology/software/digital-identity-for-online-learning-di4ol/>.

Digital Technologies and Hangarau Matihiko curriculum

In 2018, New Zealand released new curriculum content focused on Digital Technologies and Hangarau Matihiko for primary and secondary education. To support its implementation, the Ministry of Education pursued a suite of initiatives including professional development and programme financing, teaching and learning resources available online, and public and private partnerships. Due to the devolved nature of our education system, schools take many and varied approaches to the teaching of digital skills.

The government provides resources to support teaching and learning in primary and secondary education, including some that are centrally procured from commercial providers and made available to schools. ECE and tertiary institutions must acquire their own resources for teaching and learning. Learning resources for primary and secondary educational levels are available online across more than 70 individualised websites. They cover a range of subjects and are classified according to the relevant curriculum framework. A new website was launched in 2023 to rehouse resources in an integrated and connected hub. For more information, see: <https://tahurangi.education.govt.nz/>.

Schools are required to develop strategic and annual plans and report to the Ministry of Education on outcomes. However, though it is highly likely that these will include digital technologies, it is not required. It is at the discretion of the school.

Strengthening assessment practices through digital tools

Implementing smarter and consistent assessment is one of the key education priorities of the government.

Not enough schools are using robust tools that consistently measure student progress, which risks students not being offered additional support early enough. This could lead to them falling behind in their learning. And it's likely to be the most vulnerable and transient students who are most affected by this lack of consistency in the education system.

It also means there is limited data on how all students in New Zealand are progressing with their core skills. It is too late to find out at Year 10 or 11 when a student does the NCEA co-requisite that their reading, writing and maths skills are not at the expected level.

The Ministry is looking to make changes to the education system, so we have a consistent, coherent approach to assessment. As part of these changes, schools and kura will transition to do twice yearly assessments for students in Years 3 – 8 to monitor their progress in reading, writing, maths, pānui, tuhituhi and pāngarau using one of the standardised assessment tools (e-asTTle, Progressive Achievement Tests (PAT) and Te Waharoa Ararau (TWA).

This will help teachers check students are progressing at expected levels, enabling them to provide support those who need additional help. This will also help parents, whānau and caregivers to clearly see how their child is progressing, and whether additional help or extension is needed.

Formative assessment tools

The Ministry of Education provides digital tools for assessment to support student progress and achievement. For example, the electronic assessment Tool for Teaching and learning (e-asTTle) is an online assessment tool developed to assess students' achievement and progress in reading, mathematics, writing, and in pānui, pāngarau, and tuhituhi (Māori-medium). The tool is used nationally and is designed to provide reliable and valid assessment information for teachers and students which can be used to enhance and support teaching and learning.

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|--|---|
| ☐ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways | ☒ Limited access to internet and/or electricity |
| ☒ Lack of equity and inclusion in digital learning solutions | ☐ Limited access to hardware (devices, chargers, etc.) |
| ☐ inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks | ☒ Difficulty in regulating the use of digital education solutions |
| ☐ Other: | ☐ Difficulty in sustainably financing digital education solutions at national scale |
| | ☐ Lack of digital skills development for meaningful use of digital technology in teaching practice |
| | ☐ Disjointed or fragmented solutions that are not centrally systematized or regulated |

- Please elaborate. Brief quantitative information may be added.

During COVID-19, the Ministry of Education worked to overcome the digital divide created by the requirement for remote learning during school closures. It provided access to internet connectivity to more than 40,000 households, digital resources, and other learning equipment. In 2021, research found that affordability of devices and connection was, and remains, a barrier to digital inclusion, and coordinated and accelerated action on digital inclusion is required. For more information, see: <https://www.digital.govt.nz/showcase/tackling-the-digital-divide-during-covid-19/>.

The Ministry of Education's Equitable Digital Access (EDA) initiative has been working with schools and community organisations to identify home connectivity gaps for students in rural and remote areas as part of Ministry of Education's distance learning support initiative. The Ministry of Education has connected over 3,300 student households in rural zones, including over 760 homes during the final extension of the

programme (it is due to end on 30 June 2024). The connections were provided using a wide range of technology solutions, including conventional satellite and more recently Starlink connections.

For one year from July 2024, the Ministry is partnering with the Manaiakalani Education Trust, to coordinate between families and internet service providers, and continue offering internet connections to families.

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

- ☒ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.
- ☒ Monitoring results are made public. [Please provide the link:](#)

In New Zealand, governance of different parts of the education system is set at the appropriate level for that part. There is no middle-level school administration. Schools are managed by school boards with a focus on student achievement. The role of government education agencies has been refocused to support education system leaders, such as teachers and education providers. The government sets annual objectives in a Statement of Intent for its central education agencies, and the Ministry of Education develops a national policy framework. Funding aims to support free schooling, and although tertiary study involves costs to the student, financial support is available. A part of the funding that tertiary institutions receive depends on student achievement.

In New Zealand, the school board is the governing body of the school, composed of five elected parent representatives, the principal, a student (secondary schools only) and a teacher representative. The board is the employer of staff and has responsibilities for setting targets and reporting on them, management of school curriculum, financial and property management, health and safety and policies and procedures, student achievements and discipline. The board also plays a key role in supporting principals in their planning, reporting and self-review tasks and in evaluating them. Many of the board's responsibilities are delegated to the principal on a day-to-day basis, but the school board is ultimately collectively responsible for all governance decisions.

The School Trustees Association, funded by the Ministry of Education, provides support services to boards, including principals. The Association employs people with a background in school governance (e.g., former board members) as well as specialists in areas for which boards are responsible (e.g., employment lawyers). It also helps spread best practice via a large annual national conference and in advisory services to schools.

The tertiary education system is designed so that there is limited direct influence in the day-to-day functioning of the Crown agencies that oversee tertiary education and the organisations that deliver it. This protects institutional autonomy and keeps separate the government's purchasing and investment role (TEC), its quality assurance role (NZQA) and its policy, legislative roles (Ministry of Education).

Wānanga

Wānanga play a unique role in the tertiary education sector because of their 'for Māori, by Māori' approach, commitment to and involvement with the protection and revitalisation of te ao, te reo and mātauranga Māori. The Education and Training Amendment Act 2023 established a new Wānanga Enabling Framework. This Act amends the Education and Training Act 2020, establishing a new 'enabling' framework for the wānanga sector creating new fit-for-purpose administrative settings for wānanga to recognise their unique role. For more information, see: <https://www.education.govt.nz/our-work/legislation/wananga-sector-framework/>.

The framework is intended to foster a flourishing wānanga sector that normalises te reo and mātauranga Māori and strengthens a sense of identity and culture for Māori learners. It is expected that this will, in turn, lead to associated wellbeing impacts and higher learning outcomes for Māori learners. This significant reform will allow for the transfer of some governance and accountability arrangements currently held by the Crown to the founding iwi or hapū of a wānanga or another Māori organisation.

Monitoring

The Ministry of Education monitors three Crown entities: Education New Zealand, the New Zealand Qualifications Authority, and the TEC. This monitoring role is mandated through the Crown Entities Act 2004.

Education Review Office

ERO is the New Zealand government's external education evaluation agency. ERO evaluate and report on the education and care of learners in schools and early childhood services.

The Chief Executive, who is also the Chief Review Officer (CRO), assigns approximately 135 review officers to undertake reviews across the country. The CRO's functions and powers are described in the Education and Training Act 2020, Part 5, subpart 3 and Part 6, subpart 6. The Act gives the CRO the power to initiate reviews, report and publish findings on the provision of education and the care for children and young people in New Zealand. This takes place in Māori-medium, English-medium and Pacific-medium contexts through:

- Regular institutional reviews
- A significant programme on system-wide inquiry, evaluation and research.

ERO undertakes regular institutional reviews. Reviews of schools are focused on continuous improvement through strengthening the capability of schools by identifying priority areas for improvement, including the effectiveness of engagement with wider communities. Reviews in early learning services are focused on accountability (including compliance with regulatory requirements), education improvement, and knowledge generation (where education is translated into achievement).

ERO conducts research and evaluations on the performance of the education system with the purpose of providing unbiased evidence to the education sector. These findings can be shared and used as a catalyst for change in achieving participation, engagement, and achievement for all learners.

ERO's focus areas are wide ranging, including the evaluation of groups of students such as high priority learners, key aspects in the provision in the New Zealand curriculum, and key issues affecting learners such as bullying and learner wellbeing. National evaluations capture the voice of children and young people through student surveys, focus groups or interviews, and student perspectives from institutional reviews. ERO uses its findings and the information it gathers to remain well-informed about what's happening at a system level and the effectiveness of programmes and investments that make the biggest difference to learner outcomes. For more information, see: <https://ero.govt.nz/>.

Tertiary Education Commission (TEC)

The TEC is a Crown entity established under section 159C of the Education Act 1989 and continued under section 401 of the Education and Training Act 2020. TEC monitor the performance of tertiary education organisations and report the results to the Minister of Education. TEC operate a continuum of monitoring and investigation activities that respond to the level of risk and provide guidance to the sector to help strengthen performance. Intelligence from all monitoring work informs advice to the Minister of Education and other agencies on the performance of the tertiary education system more broadly.

TEC use audits and investigations to monitor individual tertiary education organisations and help them to address specific issues. They also undertake reviews of system-level trends and issues and share findings with the sector to help tertiary education organisations improve their performance and compliance.

The TEC also has specific functions relating to the monitoring of tertiary education institutions, the financial performance of the tertiary sector, and supporting their governance. This is to ensure the public can have confidence in the stability of the tertiary education sector in New Zealand and to minimise risks to the Crown. For more information, see: <https://www.tec.govt.nz/funding/funding-and-performance/monitoring-tertiary-education-sector/monitoring-the-tertiary-education-sector-2/>.

New Zealand Qualifications Authority

NZQA are a statutory entity under Subpart 2 of Part 5 of the Education and Training Act 2020, and a Crown agent under the Crown Entities Act 2004. NZQA have authority to make rules and regulate parts of the education sector. Their purpose is to support learners in New Zealand by:

- Making sure they have access to quality training and can learn their whole lives
- Keeping complete records of their educational achievements
- Letting them take their achievements with them anywhere in the world
- Setting them up for success through our resources and services.

NZQA responsibilities include to:

- Manage the New Zealand Qualifications and Credentials Framework
- Run the assessment system for secondary schools
- Independently check the quality of tertiary education providers, except universities
- Administer the Code of Pastoral Care
- Recognise overseas qualifications
- Manage standard-setting for some unit standards and qualifications.

- ☒ Monitoring processes are participatory, inclusive and regular.
- ☒ Sector-wide and multisector approach is adopted to education governance.
- ☒ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.
- ☒ The decision-making process for the allocation of resources to education is transparent.
- ☒ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.
- ☒ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

See above.

- What challenges were encountered in terms of governance?

- | | |
|--|---|
| ☐ Budgetary constraints | ☐ Absence of supportive/ inconsistent/obsolete legal and policy environment |
| ☐ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels | ☐ Lack or weakness of monitoring systems – including the lack of reliable data |
| ☐ Poor dialogue with teachers' trade unions | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

The design of New Zealand's education system (where schools largely operate as autonomous, self-managing entities) works well for many schools, but is not without its challenges. The highly devolved system of school governance empowers schools with greater flexibility to be responsive to diverse needs and aspirations of the communities they serve. However, schools are largely left to operate on their own, often with slow and uneven transfers of professional knowledge, skills, and best practice, as well as duplication of effort. This has resulted in wide variability in learners' outcomes, both across and within schools. Despite a solid school governance support system, the burden on school boards and principals is high. The nature of the relationship between schools and central government can also be highly variable, and there is an opportunity for the system to be more cohesive and connected across all levels of the system.

While these challenges do exist, however, New Zealand has an extensive work programme underway to strengthen the education system, from early childhood education through to higher education, including work to overcome challenges in the schooling system (and its governance).

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

o Other: